

Title 9. Rules on Law Practice, Attorneys, and Judges

Division 1. General Provisions

Rule 9.0. Title and source

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(a) Title

The rules in this title may be referred to as the Rules on Law Practice, Attorneys, and Judges.

(b) Source

The rules in this title were adopted by the Supreme Court under its inherent authority over the admission and discipline of attorneys and under subdivisions (d) and (f) of section 18 of article VI of the Constitution of the State of California.

Rule 9.0 amended and renumbered effective January 1, 2018; adopted as rule 9.1 effective January 1, 2007.

Division 2. Admission and Discipline of Attorneys and Review of State Bar Proceedings

Chapter 1. General Provisions

Rule 9.1. Definitions

Rule 9.2. Interim special regulatory assessment for Attorney Discipline [Repealed]

Rule 9.1. Definitions

As used in this division, unless the context otherwise requires:

- (1) “Licensee” means a person licensed by the State Bar to practice law in this state.
- (2) “State Bar Court” means the Hearing Department or the Review Department established under Business and Professions Code sections 6079.1 and 6086.65.
- (3) “Review Department” means the Review Department of the State Bar Court established under Business and Professions Code section 6086.65.
- (4) “General Counsel” means the general counsel of the State Bar of California.

- (5) “Chief Trial Counsel” means the chief trial counsel of the State Bar of California appointed under Business and Professions Code section 6079.5.
- (6) “Hearing Department” means the Hearing Department of the State Bar Court established under Business and Professions Code section 6079.1.
- (7) “Review Department” means the Review Department of the State Bar Court established under Business and Professions Code section 6086.65.
- (8) “General Counsel” means the general counsel of the State Bar of California appointed under Business and Professions Code section 6012.
- (9) “Chief Trial Counsel” means the chief trial counsel of the State Bar of California appointed under Business and Professions Code section 6079.5.

Rule 9.1 amended effective October 1, 2025; adopted as rule 950 effective December 1, 1990; previously amended and renumbered as rule 9.5 effective January 1, 2007; previously renumbered as 9.1 effective January 1, 2018; previously amended effective January 1, 2019.

Rule 9.2. Interim Special Regulatory Assessment for Attorney Discipline [Repealed]

Rule 9.2 repealed effective October 1, 2025; adopted as rule 9.9 effective November 16, 2016; previously renumbered effective January 1, 2018; previously amended effective January 1, 2019.

Chapter 2. Attorney Admissions

Rule 9.3. Inherent power of Supreme Court

Rule 9.4. Nomination and appointment of members to Committee of Bar Examiners

Rule 9.5. Authority of the Committee of Bar Examiners

Rule 9.6. The California bar examination

Rule 9.7. Attorney oath and annual declaration

Rule 9.8. Roll of attorneys admitted to practice

Rule 9.8.5. State Bar Client Trust Account Protection Program

Rule 9.9. Online reporting by attorneys

Rule 9.9.5. Attorney fingerprinting

Rule 9.3. Inherent power of Supreme Court

(a) Inherent power over admissions

The Supreme Court has the inherent power to admit persons to practice law in California. The State Bar serves as the administrative arm of the Supreme Court for admissions matters and in that capacity acts under the authority and at the direction of the Supreme Court.

(Subd (a) amended effective October 1, 2025.)

(b) Inherent jurisdiction over practice of law

Nothing in this chapter may be construed as affecting the power of the Supreme Court to exercise its inherent jurisdiction over the practice of law in this state.

Rule 9.3 amended effective October 1, 2025; adopted effective January 1, 2018; previously amended effective January 1, 2019.

Rule 9.4. Nomination and appointment of members to the Committee of Bar Examiners

(a) Appointments

- (1) The Supreme Court is responsible for appointing ten examiners to the Committee of Bar Examiners for a term of four years with each full term commencing at the end of the Board of Trustees' September meeting.
- (2) The Supreme Court may fill any vacancies at any time. Vacancies shall be filled for the remainder of the four-year term vacated and such appointments do not count toward any term limits for the examiner filling the vacancy under (a)(5) of this rule.
- (3) At least one examiner must be a judicial officer in this state.
- (4) The other examiners must be licensees, at least one of whom shall have been admitted to practice law in California within three years of the date of appointment.
- (5) With the exception of appointments to fill a partial term vacancy under (a)(2) of this rule, each examiner shall serve for a term of four years and may apply for reappointment by the Supreme Court for up to three additional full terms. Reappointments are at the discretion of the Supreme Court. Examiners may continue to serve beyond the expiration of their terms until their successors are appointed.
- (6) The Supreme Court shall select the chair and vice chair of the Committee of Bar Examiners. The terms of the chair and vice chair shall be one year ending at the conclusion of the Board of Trustees' September meeting.

(Subd (a) amended effective October 1, 2025; previously amended effective January 1, 2019.)

(b) Nominations

- (1) The Supreme Court may make its appointments from a list of candidates nominated by the Board of Trustees pursuant to a procedure approved by the court.

- (2) Candidates selected for nominations shall be screened for actual and potential conflicts of interest including any financial and nonfinancial interests that might affect or might be affected by the candidate's service as an examiner. Such conflicts may include being actively involved in any capacity related to a bar examination preparation business or in any other capacity to assist applicants in fulfilling the requirements for admission; or are actively serving as a member of the governing or other policy-making board or committee of a law school.

Rule 9.4 amended effective October 1, 2025; adopted effective January 1, 2018; previously amended effective January 1, 2019.

Rule 9.5. Authority of the Committee of Bar Examiners

(a) Admissions

The Committee of Bar Examiners, pursuant to the authority delegated to it by the Supreme Court and the Board of Trustees, is authorized to determine and administer the requirements for admission to practice law, to examine all applicants for admission, and to certify to the Supreme Court for admission those applicants who fulfill the admission requirements. Any changes recommended by the examiners to the prerequisites to be certified for admission to practice law must be reviewed and approved by the Board of Trustees and then submitted to the Supreme Court for its review and approval.

(subd (a) adopted October 1, 2025.)

(b) Additional authority

In furtherance of its duties under these rules, the Committee of Bar Examiners shall:

- (1) Have the power to conduct hearings on matters involving admissions and may take and hear relevant evidence, administer oaths and affirmations, and compel by subpoena the attendance of witnesses and the production of documents in accordance with Code of Civil Procedure section 1985 et seq.,
- (2) Regularly review the revenues and expenses for the admissions fund and propose a budget for the Office of Admissions, subject to review and approval by the Board of Trustees, prior to the adoption of a final budget pursuant to Business and Professions Code section 6140.1;
- (3) Recommend to the Executive Director of the State Bar any candidate under consideration for Chief of Admissions;

- (4) Regulate and oversee law schools conferring a juris doctor degree in California that are not accredited by the American Bar Association, as required by Business and Professions Code section 6060.7; and
- (5) Set fees related to admissions programs and related to the accreditation, registration, and inspection of law schools under (b)(4), subject to review and approval by the Board of Trustees.

(Subd (b) adopted effective October 1, 2025.)

(c) Delegation of duties

The Committee of Bar Examiners may delegate its duties described in this rule and rule 9.6 to a subcommittee of examiners, as necessary and where not prohibited by law or these rules. Unless otherwise stated in the delegation, the action of the subcommittee shall be the decision of the committee without further ratification. Actions taken by the subcommittee shall be reported to the full committee at the next regularly scheduled meeting.

Rule 9.5 amended effective October 1, 2025; adopted effective January 1, 2018; previously amended effective January 1, 2019.

Rule 9.6. The California bar examination

(a) Administration of the exam

The Committee of Bar Examiners is responsible for administering the bar examination, including its mode of administration, proctoring, format, scope, topics, content, and grading process. In carrying out these responsibilities, the committee:

- (1) May utilize the services of third parties, subject to review and approval by the Board of Trustees, to prepare bar examination questions, provided that the vendor has no financial interest in other matters that might create a conflict of interest with the State Bar or with the vendor's ability to draft fair and reliable exam questions. With the exception of examination questions provided by the National Conference of Bar Examiners, the attorney and judicial officer members of the committee, or their designated content validation panels, must review all new questions drafted for the examination before they are administered on a bar examination or released for use in any study guide;
- (2) Must develop, maintain, and publish qualification standards, subject to review and approval by the Supreme Court, for the committee's selection of panelists and subject matter experts for any content validation panels or standard setting panels designated by the committee to review new

examination questions or to determine the recommended raw passing score for the bar examination;

- (3) Must develop, maintain, and publish standards for assessing the ability of any third-party vendor to administer and/or proctor the bar examination in any format (in-person, online, or hybrid), subject to review and approval by the Board of Trustees;
- (4) Must develop, maintain, and publish standards regarding bar examination testing accommodations, subject to review and approval by the Board of Trustees;
- (5) Must oversee the grading process of the bar examination and develop, maintain, and publish standards for grading, regrading, and for any scoring adjustments redressing exam administration irregularities, subject to review and approval by the Board of Trustees;
- (6) Must recommend any change to the passing score for the bar examination, subject to review and approval by the Supreme Court; and
- (7) Must consult with law school stakeholders on issues relating to the doctrines tested on the bar examination, the experience of examinees, and the effective design and delivery of exams.

(Subd (a) amended effective October 1, 2025; previously amended effective January 1, 2019.)

(b) Analysis of costs and benefits of changes to the exam

Any changes to the bar examination that require substantial modification to the training or preparation required for passage of the examination or that substantially modify the method by which the examination is administered must be approved by the Supreme Court. In proposing such changes, the Committee of Bar Examiners must conduct and submit a cost-benefit analysis to assess, if relevant:

- (1) The direct and indirect costs and the tangible and intangible benefits for the State Bar and examinees of existing practices compared to the proposed changes;
- (2) Any other alternative, existing products or services that are feasible to accomplish the same goals and objectives as the proposed changes and at a comparable or lower cost for the State Bar and the examinees;
- (3) Whether any new technological requirements or new fees to implement the proposed changes would place an undue financial burden on the examinees;

- (4) The estimated number of temporary and non-temporary full-time equivalent positions necessary to implement the proposed changes;
- (5) The estimated timeframe required to competently implement the proposed changes; and
- (6) Whether the proposed changes have previously demonstrated their efficacy under testing conditions similar to those of the bar examination.

(Subd (b) adopted effective October 1, 2025.)

(c) Analysis of validity

The Committee of Bar Examiners, subject to the review and approval of the Board of Trustees, must conduct an analysis of the validity of the bar examination and its passing score at least once every seven years, or whenever directed by the Supreme Court. The examiners must prepare and submit a report summarizing its findings and recommendations, if any, to the Board of Trustees and the Supreme Court. Any recommendations proposing significant changes to the topics and skills tested on the bar examination, and any recommended change to the passing score, must be submitted to the Supreme Court for its review and approval.

(Subd (c) relettered and amended effective October 1, 2025; adopted as subd (b); previously amended effective January 1, 2019.)

(d) Report on examination

The Committee of Bar Examiners must provide the Supreme Court a report on each administration of the bar examination in a timely manner.

(Subd (d) relettered and amended effective October 1, 2025; adopted as subd (c).)

Rule 9.6 amended effective October 1, 2025; adopted effective January 1, 2018; previously amended effective January 1, 2019.

Rule 9.7. Attorney oath and annual declaration

(a) Oath required when admitted to practice law

In addition to the language required by Business and Professions Code section 6067, the oath to be taken by every person on admission to practice law is to conclude with the following: “As an officer of the court, I will strive to conduct myself at all times with dignity, courtesy and integrity.”

(b) Annual declaration

Each active licensee and each special admissions attorney (permitted to practice law in the State of California under rules 9.41.1, 9.44, 9.45, or 9.46) must, pursuant to the procedure adopted by the State Bar, declare adherence to the oath language provided by (a) of this rule and Professions Code section 6067 on an annual basis.

(c) Implementation schedule and penalty for noncompliance

- (1) The State Bar must develop a schedule to implement the submission of the declaration required by (b) of this rule by the deadline for the payment of the annual license fee.
- (2) Beginning on April 1, 2026, an active licensee or special admissions attorney who fails to submit the annual declaration as required by this rule must be enrolled as an inactive licensee of the State Bar under rules adopted by the Board of Trustees of the State Bar.

(d) Authorization for the Board of Trustees of the State Bar to adopt rules and procedures

The Board of Trustees of the State Bar is authorized to adopt such rules and procedures as it deems necessary and appropriate to ensure compliance with this rule.

(e) Fees and penalties

The State Bar has the authority to set and collect appropriate fees and penalties for violations of this rule.

Rule 9.7 amended effective October 1, 2025; adopted as rule 9.4 effective May 27, 2014; previously renumber as rule 9.7 effective January 1, 2018.

Rule 9.8. Roll of attorneys admitted to practice

(a) State Bar to maintain the roll of attorneys

The State Bar must maintain, as part of the official records of the State Bar, a roll of attorneys, which is a list of all persons admitted to practice in this state. Such records must include the information specified in Business and Professions Code section 6002.1 and 6064 and other information as directed by the Supreme Court.

(Subd (a) amended effective January 1, 2019; adopted as unlettered subdivision effective May 1, 1996; previously amended effective January 1, 2007; previously lettered effective June 1, 2007.)

(b) Annual State Bar recommendation for one-time expungement of suspension for nonpayment of license fees

The State Bar is authorized to transmit to the Supreme Court on an annual basis the names of those licensees who meet all of the following criteria, along with a recommendation that their public record of suspension for nonpayment of license fees be expunged:

- (1) The licensee has not on any previous occasion obtained an expungement under the terms of this rule or rule 9.31;
- (2) The suspension was for 90 days or less;
- (3) The suspension ended at least seven years before the date of the submission of the licensee's name to the Supreme Court;
- (4) The licensee has no other record of suspension or involuntary inactive enrollment for discipline or otherwise.

(Subd (b) amended effective January 1, 2019; adopted effective June 1, 2007; previously amended effective August 1, 2017.)

(c) Records to be maintained by State Bar

Upon order of the Supreme Court of expungement of a licensee's record under (b) of this rule, the State Bar will remove or delete the record of such suspension from the licensee's public record. Notwithstanding any other provision of this rule, the State Bar must maintain such internal records as are necessary to apply the terms of (b) of this rule and to report to the Commission on Judicial Nominees Evaluation or appropriate governmental entities involved in judicial elections the licensee's eligibility for a judgeship under the California Constitution, article VI, section 15.

(Subd (c) amended effective January 1, 2019; adopted effective June 1, 2007.)

(d) Duty of disclosure by licensee

Expungement of a licensee's suspension under (b) of this rule will not relieve the licensee of his or her duty to disclose the suspension for purpose of determining the licensee's eligibility for a judgeship under the California Constitution, article VI, section 15. For all other purposes the suspension expunged under (b) of this rule is deemed not to have occurred and the licensee may answer accordingly any question relating to his or her record.

(Subd (d) amended effective January 1, 2019; adopted effective June 1, 2007.)

(e) Authorization for the Board of Trustees of the State Bar to adopt rules and regulations

The Board of Trustees of the State Bar is authorized to adopt such rules and regulations as it deems necessary and appropriate in order to comply with this rule.

(Subd (e) amended effective August 1, 2017; adopted effective June 1, 2007.)

(f) Inherent power of Supreme Court

Nothing in this rule may be construed as affecting the power of the Supreme Court to exercise its inherent power to direct the State Bar to expunge its records.

(Subd (f) adopted effective June 1, 2007.)

Rule 9.8 amended effective January 1, 2019; adopted as rule 950.5 by the Supreme Court effective May 1, 1996; previously amended and renumbered as rule 9.6 effective January 1, 2007; previously amended effective June 1, 2007, and August 1, 2017; previously renumbered effective January 1, 2018.

Rule 9.8.5. State Bar Client Trust Account Protection Program

(a) Client trust account protection program requirements

The State Bar of California must establish and administer a Client Trust Account Protection Program for the protection of client funds held in trust by a licensee that facilitates the State Bar's detection and deterrence of client trust accounting misconduct.

- (1) The State Bar must impose the following requirements under this program:
 - (A) Annual Trust Account Certification - All licensees must annually (1) report whether or not, at any time during the prior year, they were responsible for client funds and funds entrusted by others under the provisions of rule 1.15 of the Rules of Professional Conduct and (2) if they were responsible, certify that they are knowledgeable about, and in compliance with, applicable rules and statutes governing client trust accounts and the safekeeping of funds entrusted by clients and others; and
 - (B) Annual Trust Account Registration - All licensees who were responsible for client funds and funds entrusted by others under the provisions of rule 1.15 of the Rules of Professional Conduct must, annually, register each and every trust account in which the licensee held such funds at any time during the prior year by identifying account numbers and financial institutions in a manner prescribed by the State Bar for such reporting that will securely maintain the information submitted.
- (2) Among the other requirements the State Bar may impose under this program are the following:

- (A) Annual Self-Assessment - All licensees who were responsible, at any time during the prior year, for a client trust account under the provisions of rule 1.15 of the Rules of Professional Conduct must complete an annual self-assessment on client trust accounting duties and practices;
- (B) Compliance Review - If selected by the State Bar, a licensee must complete and submit to the State Bar a client trust accounting compliance review to be conducted by a certified public accountant at the licensee's expense; and
- (C) Additional Actions - If selected by the State Bar, an additional action or actions based on the results of a compliance review may include an investigative audit, a notice of mandatory corrective action, and a referral for disciplinary action.

(b) Authorization for the Board of Trustees of the State Bar to adopt rules and regulations

The Board of Trustees of the State Bar is authorized to formulate and adopt such rules and regulations as it deems necessary and appropriate to comply with this rule, including a rule or regulation that defines a licensee who is responsible for client funds and funds entrusted by others under the provisions of rule 1.15 of the Rules of Professional Conduct.

(c) Failure to comply with program

A licensee who fails to satisfy the requirements of this program must be enrolled as an inactive licensee of the State Bar under the rules to be adopted by the Board of Trustees of the State Bar. Inactive enrollment imposed for noncompliance with the requirements of this program is cumulative and does not preclude a disciplinary proceeding or other actions for violations of the State Bar Act, the Rules of Professional Conduct, or other applicable laws.

(d) Fees and penalties

The State Bar has the authority to set and collect appropriate fees and penalties.

Rule 9.8.5. adopted effective January 1, 2023.

Rule 9.9. Online reporting by attorneys

(a) Required information

To maintain the roll of attorneys required by rule 9.8 and to facilitate communications by the State Bar with its licensees, each licensee must use an online account on a secure system provided by the State Bar to report:

- (1) A current office address and telephone number, or if none, an alternative address;
- (2) A current e-mail address not to be disclosed on the State Bar's website or otherwise to the public without the licensee's consent;
- (3) The URL of the licensee's professional website, if one is maintained;
- (4) The licensee's practice sector, if applicable;
- (5) The number of attorneys employed by the licensee's law firm, agency, or other legal employer, if any;
- (6) Information about the licensee's trust account or accounts, if any, as set out in the Rules of the State Bar of California, rule 2.5;
- (7) Legal specialties in which the licensee is certified, if any;
- (8) Any other jurisdictions in which the licensee is admitted and the date(s) of admission;
- (9) The jurisdiction, and the nature and date of any discipline imposed by another jurisdiction, if any, including the terms and conditions of any probation imposed, and, if suspended or disbarred in another jurisdiction, the date of any reinstatement in that jurisdiction;
- (10) Any other information as directed by the California Supreme Court;
- (11) Any other information as may be required by agreement with, or by conditions of probation imposed by, any other government agency; and
- (12) Any other information as required by law.

(Subd (a) amended effective January 1, 2024: previously amended effective January 1, 2019.)

(b) Optional information

A licensee may also use an online attorney records account to provide:

- (1) an e-mail address for disclosure to the public on the State Bar website; and

- (2) additional information as authorized by statute, rule, or Supreme Court directive, or as requested by the State Bar.

(Subd (b) amended effective January 1, 2024; previously amended effective January 1, 2019.)

(c) Exclusions

Unless otherwise permitted by law or the Supreme Court, the State Bar may not use e-mail as substitute means of providing a notice required to initiate a State Bar disciplinary or regulatory proceeding or to otherwise change a licensee's status involuntarily.

(Subd (c) amended effective January 1, 2019.)

(d) Exemption

A licensee who does not have online access or an e-mail address may claim an exemption from the reporting requirements of this rule. The exemption must be requested in the manner prescribed by the State Bar.

(Subd (d) amended effective January 1, 2019.)

(e) Failure to Comply

A licensee who fails to satisfy the requirements of this rule will be enrolled as an inactive licensee of the State Bar under the rules to be adopted by the Board of Trustees of the State Bar. Inactive enrollment imposed for noncompliance with the requirements of this rule is cumulative and does not preclude a disciplinary proceeding or other action for violation of the State Bar Act, the Rules of Professional Conduct, or other applicable laws.

(Subd (e) adopted effective January 1, 2024.)

(f) Fees and penalties

The State Bar has the authority to set and collect appropriate fees and penalties.

(Subd (f) adopted effective January 1, 2024.)

Rule 9.9 amended effective January 1, 2024; adopted as rule 9.7 effective February 1, 2010; previously renumbered effective January 1, 2018; previously amended effective January 1, 2019.

Rule 9.9.5. Fingerprinting of applicants and licensees

(a) Fingerprinting of applicants for admission or reinstatement

Applicants for admission or reinstatement to the practice of law in the State of California must, pursuant to the procedures and exceptions identified by the State Bar, be fingerprinted for the purpose of obtaining criminal offender record information regarding state and federal level convictions and arrests from the California Department of Justice and the Federal Bureau of Investigation. The State Bar's use of that information shall be limited to the official use of the State Bar in establishing the identity of the applicant and in determining the character and fitness of the applicant for admission or reinstatement, and in discovering prior and subsequent criminal arrests of an applicant, licensee, or applicant for reinstatement.

(Subd (a) adopted effective October 1, 2025.)

(b) Fingerprinting of active or inactive licensees

Each active licensee must, pursuant to the procedures and exceptions identified by the State Bar, be fingerprinted for the purpose of obtaining criminal offender record information regarding state and federal level convictions and arrests from the California Department of Justice and the Federal Bureau of Investigation. Failure to be fingerprinted, if required, may result in involuntary inactive enrollment of the licensee pursuant to Business and Professions Code section 6054, subdivision (e). An inactive licensee who has not previously submitted fingerprints under this rule must, pursuant to the procedures and exceptions identified by the State Bar, be fingerprinted prior to being placed on active status. The fingerprints submitted under this rule will be retained by the California Department of Justice for the limited purpose of subsequent arrest notification.

(Subd (b) adopted effective October 1, 2025.)

(c) Special admissions attorneys

Attorneys permitted to practice law in the State of California pursuant to rules 9.41.1, 9.44, 9.45, and 9.46 must, pursuant to the procedures and exceptions identified by the State Bar, be fingerprinted for the purpose of obtaining criminal offender record information regarding state and federal level convictions and arrests from the California Department of Justice and the Federal Bureau of Investigation. These fingerprints will be retained by the California Department of Justice for the limited purpose of subsequent arrest notification. Failure to be fingerprinted, if required, may result in a State Bar determination that the attorney cease providing legal services in California.

(Subd (c) relettered and amended effective October 1, 2025; adopted as subd (e).)

(d) Subsequent arrest notification

The State Bar must maintain a contract with the California Department of Justice for subsequent arrest notification services for licensees on active status with the State Bar and special admissions attorneys permitted to practice in the State of California pursuant to rules 9.41.1, 9.44, 9.45, and 9.46.

(Subd (d) adopted effective October 1, 2025.)

(e) Information obtained by fingerprint submission; disclosure limitations

Any information obtained by the State Bar as a result of fingerprint submission under this rule must be kept confidential and used solely for State Bar licensing and regulatory purposes.

(Subd (e) relettered effective October 1, 2025; adopted as subd (g).)

(f) Fingerprint submission and processing costs

- (1) Except as described in (f)(2), all costs incurred for the processing of fingerprints for the State Bar, including print furnishing and encoding, as required by Business and Professions Code section 6054, must be borne by the applicant, licensee, or special admissions attorney.
- (2) The State Bar must develop procedures for granting waivers of the processing costs of running California Department of Justice and Federal Bureau of Investigation background checks for applicants applying under (c) of this rule and licensees with demonstrable financial hardship.

(Subd (f) amended effective December 1, 2025; adopted as subd (h); relettered and amended effective October 1, 2025.)

(g) Persons who are physically unable to be fingerprinted

- (1) If the California Department of Justice makes a determination pursuant to Penal Code section 11105.7 that any person required to be fingerprinted under this rule is presently unable to provide legible fingerprints, the person will be deemed to have complied with the fingerprinting requirements of this rule.
- (2) Persons required to be fingerprinted under this rule may also submit notification to the State Bar that they are unable to submit fingerprints due to disability, illness, accident, or other circumstances beyond their control. The State Bar must evaluate the notification and may require additional evidence. If the State Bar determines that the person is unable to submit fingerprints based on the information provided, the person will be deemed to have complied with the fingerprinting requirements of this rule.

- (3) A determination of deemed compliance under (g)(1) and (g)(2) will apply only to those persons who are unable to supply legible fingerprints due to disability, illness, accident, or other circumstances beyond their control and will not apply to persons who are unable to provide fingerprints because of actions they have taken to avoid submitting their fingerprints.

(Subd (g) relettered and amended effective October 1, 2025; adopted as subd (i).)

Rule 9.9.5 amended effective December 1, 2025; adopted effective June 1, 2018; amended effective October 1, 2025.

Chapter 3. Attorney Disciplinary Proceedings

Rule 9.10. Authority of the State Bar Court

Rule 9.11. State Bar Court judges

Rule 9.12. Standard of review for State Bar Court Review Department

Rule 9.13. Petitions for review by licensees of State Bar Court decisions and review of other State Bar decisions

Rule 9.14. Petitions for review by the Chief Trial Counsel of State Bar Court decisions

Rule 9.15. Petitions for review by the State Bar in moral character proceedings

Rule 9.16. Grounds for review of State Bar Court decisions in the Supreme Court

Rule 9.16.1. Briefs by parties following grant of review by the Supreme Court

Rule 9.16.2. Requesting depublication of published State Bar Court opinion

Rule 9.17. Remand with instructions

Rule 9.18. Effective date of disciplinary orders and decisions

Rule 9.19. Conditions attached to reproofs

Rule 9.20. Duties of disbarred, resigned, or suspended attorneys

Rule 9.21. Resignations of licensees of the State Bar with disciplinary charges pending

Rule 9.22. Suspension of licensees of the State Bar for failure to comply with judgment or order for child or family support

Rule 9.23. Enforcement of disciplinary orders and final determinations by Client Security Fund as money judgments

Rule 9.24. Professional Responsibility Examination

Rule 9.10. Authority of the State Bar Court

(a) Conviction proceedings

The State Bar Court exercises statutory powers under Business and Professions Code sections 6101 and 6102 with respect to the discipline of attorneys convicted of crimes. (See Bus. & Prof. Code §6087.) For purposes of this rule, a judgment of conviction is deemed final when the availability of appeal has been exhausted and the time for filing a petition for certiorari in the United States Supreme Court on direct review of the judgment of conviction has elapsed and no petition has been filed, or if filed the petition has been denied or the judgment of conviction has been

affirmed. The State Bar Court must impose or recommend discipline in conviction matters as in other disciplinary proceedings. The power conferred upon the State Bar Court by this rule includes the power to place attorneys on interim suspension under subdivisions (a) and (b) of section 6102, and the power to vacate, delay the effective date of, and temporarily stay the effect of such orders.

(Subd (a) amended effective January 1, 2007.)

(b) Professional responsibility examination

The State Bar Court may:

- (1) Extend the time within which a licensee of the State Bar must take and pass a professional responsibility examination;
- (2) Suspend a licensee for failing to take and pass such examination; and
- (3) Vacate a licensee's suspension for failing to take and pass such examination.

(Subd (b) amended effective December 1, 2025; previously amended effective January 1, 2007, and January 1, 2019.)

(c) Probation

The State Bar Court for good cause, may:

- (1) Approve stipulations between the licensee and the Chief Trial Counsel the licensee and the State Bar Office responsible for monitoring disciplinary conditions, or both, for modification of the terms of a licensee's probation; and
- (2) Make corrections and minor modifications to the terms of a licensee's disciplinary probation.

The order of the State Bar Court must be filed promptly with the Clerk of the Supreme Court.

(Subd (c) amended effective December 1, 2025; previously amended effective January 1, 2007, and January 1, 2019.)

(d) Rule 9.20 compliance

The State Bar Court for good cause, may extend the time within which a licensee must comply with the provisions of rule 9.20 of the California Rules of Court.

(Subd (d) amended effective January 1, 2019; previously amended effective January 1, 2007.)

(e) Commencement of suspension

The State Bar Court for good cause, may delay temporarily the effective date of, or temporarily stay the effect of, an order for a licensee's disciplinary suspension from practice.

(Subd (e) amended effective January 1, 2019; previously amended effective January 1, 2007.)

(f) Readmission and reinstatement

Applications for readmission or reinstatement must, in the first instance, be filed and heard by the State Bar Court, except that no applicant who has been disbarred by the Supreme Court on two previous occasions may apply for readmission or reinstatement. Applicants for readmission or reinstatement must:

- (1) Pass a professional responsibility examination;
- (2) Establish their rehabilitation and present moral qualifications for readmission; and
- (3) Establish present ability and learning in the general law. Applicants who resigned without charges pending more than five years before filing an application for reinstatement or readmission must establish present ability and learning in the general law by providing proof, at the time of filing the application, that they have taken and passed the Attorneys' Examination administered by the Committee of Bar Examiners pursuant to the authority delegated to it by the Board of Trustees within five years prior to the filing of the application for readmission or reinstatement. Applicants who resigned with charges pending or who were disbarred must establish present ability and learning in the general law by providing proof, at the time of filing the application for readmission or reinstatement, that they have taken and passed the Attorneys' Examination by State Bar within three years prior to the filing of the application for readmission or reinstatement.

(Subd (f) amended effective January 1, 2019; previously amended effective January 1, 2007, and January 1, 2010.)

(g) Inherent power of Supreme Court

Nothing in these rules may be construed as affecting the power of the Supreme Court to exercise its inherent jurisdiction over the lawyer discipline and admissions system.

(Subd (g) amended effective January 1, 2007.)

Rule 9.10 amended effective December 1, 2025; adopted as rule 951 effective December 1, 1990; previously amended by the Supreme Court effective April 1, 1996, January 1, 2007, January 1, 2010, and January 1, 2019.

Rule 9.11. State Bar Court judges

(a) Applicant Evaluation and Nomination Committee

- (1) In order to ensure that individuals appointed by the Supreme Court or by the executive or legislative branches have been evaluated objectively, the Supreme Court has established an independent Applicant Evaluation and Nomination Committee (committee) to solicit, receive, screen, and evaluate all applications for appointment or reappointment to any position of judge of the State Bar Court (hearing judge, presiding judge, and review department judge). The role of the committee is to determine whether appointees possess not only the statutorily enumerated qualifications, but also any qualifications that may be required by the Supreme Court to assist in the exercise of its ultimate authority over the discipline and admission of attorneys (see *Obrien v. Jones* (2000) 23 Cal.4th 40; *In re Attorney Discipline System* (1998) 19 Cal.4th 582; Cal. Const., art. VI, sec. 9).
- (2) The committee serves at the pleasure of the Supreme Court. It shall consist of seven members appointed by the court of whom no more than four may be licensees of the State Bar in good standing, two must be retired or active judicial officers, and no more than three may be public members who have never been a licensees of the State Bar or admitted to practice before any court in the United States. Two members of the committee must be present members of the Board of Trustees of the State Bar.
- (3) The committee must adopt, and implement upon approval by the Supreme Court, procedures for:
 - (A) Timely notice to potential applicants of vacancies;
 - (B) Receipt of applications for appointments to those positions from both incumbents and other qualified persons;
 - (C) Solicitation and receipt of public comment;
 - (D) Identification and collection of actual and potential conflicts of interest for those applicants selected for interviews by the committee. These procedures, at a minimum, must require these applicants to confidentially disclose any financial and nonfinancial interests that might affect or might be affected by service by the applicant as a State Bar Court judge and a list of attorneys whom each applicant would identify as creating a conflict in any future service by the applicant as a State Bar Court judge;

- (E) Evaluation and rating of applicants; and
- (F) Transmittal of the materials specified in (b) of this rule to the Supreme Court and, as applicable, other appointing authorities.

The procedures adopted by the committee must include provisions to ensure confidentiality comparable to those followed by the Judicial Nominees Evaluation Commission established under Government Code section 12011.5.

- (4) The Board of Trustees of the State Bar, in consultation with the Supreme Court if necessary, must provide facilities and support staff needed by the committee to carry out its obligations under this rule.

(Subd (a) amended effective December 1, 2023; previously amended effective February 15, 1995, July 1, 2000, January 1, 2007, January 1, 2009 January 1, 2019, and July 1, 2022.)

(b) Evaluations

- (1) The committee must evaluate the qualifications of and rate all applicants for positions appointed by the Supreme Court and must submit to the Supreme Court the nominations of at least two candidates for each vacancy. Candidates shall be rated as “not recommended,” “recommended,” or “highly recommended.” A rating of “not recommended” relates only to the position under consideration and does not indicate any lack of ability or expertise of the applicant generally. The committee must report in confidence to the Supreme Court its evaluation, rating and recommendation for applicants for appointment and the reasons therefore, including a succinct summary of their qualifications, at a time to be designated by the Supreme Court. The report must include written comments received by the committee, which must be transmitted to the Supreme Court together with the nominations.
- (2) The committee must evaluate the qualifications of and rate all applicants for positions appointed by the Governor, the Senate Committee on Rules, or the Speaker of the Assembly, and must submit in confidence to the Supreme Court and, as applicable, to other appointing authorities, all applications for such positions together with the committee's evaluation, rating and recommendation for these applicants, including any written comments received by the committee, at a time to be designated by the Supreme Court.
- (3) In determining the qualifications of an applicant for appointment or reappointment the committee must consider, among other appropriate factors, the following: industry, legal and judicial experience (including prior service as a judge of the State Bar Court), judicial temperament, honesty, objectivity, community respect, integrity, and ability. The committee must consider legal

work experience broadly, including, but not limited to, litigation and non-litigation experience, legal work for a business or nonprofit entity, experience as a law professor or other academic position, legal work in any of the three branches of government, and legal work in dispute resolution.

The committee shall consider whether an applicant has demonstrated the ability to write cogently and to analyze legal provisions and principles. Among the issues the committee may also consider are (1) the applicant's demonstrated capacity to work independently and to set and meet performance goals, (2) the applicant's knowledge and experience relevant to issues that give rise to the majority of State Bar Court proceedings, including professional ethics and fiduciary obligations, (3) knowledge of practice and demeanor in the courtroom, and (4) whether the applicant has been in practice for 10 or more years. The committee shall accord weight to all experience that has provided the applicant with legal experience and exposure during which the individual has demonstrated the underlying skills necessary to serve as an effective State Bar Court judge. The committee shall apply the same criteria to candidates seeking appointment from all of the appointing authorities. Any evaluation or rating of an applicant and any recommendation for appointment or reappointment by the committee must be made in conformity with Business and Professions Code section 6079.1(b) and in light of the factors specified in Government Code section 12011.5(d), and those specified in this paragraph.

- (4) The committee must use the information obtained under the procedures developed pursuant to (a)(3)(D) of this rule to evaluate the actual or potential conflicts of interest of applicants selected for interviews. The committee shall consider whether the applicant's actual or potential conflicts of interest should disqualify the applicant or reduce the applicant's rating under (a)(3)(E) of this rule. In making this determination, the committee shall consider whether the applicant has financial or nonfinancial interests or relationships with other attorneys that may impact the applicant's ability to perform the duties of a State Bar Court judge in a manner that avoids impropriety, the appearance of impropriety, or frequent disqualification. The committee shall include its determination on this issue in the report to the Supreme Court required under (b)(1) of this rule, and, as applicable, to other appointing authorities under (b)(2) of this rule.
- (5) Upon transmittal of its report to the Supreme Court under (b)(1) of this rule, and, as applicable, to other appointing authorities under (b)(2) of this rule, the committee must notify any incumbent who has applied for reappointment by the Supreme Court if he or she is or is not among the applicants recommended for appointment to the new term by the committee. The applicable appointing authority must notify as soon as possible an incumbent who has applied for reappointment but is not selected.

(Subd (b) amended effective December 1, 2023; adopted effective February 15, 1995; previously amended effective July 1, 2000, January 1, 2007, January 1, 2009, and July 1, 2022.)

(c) Appointments

Only applicants who are rated as recommended or highly recommended by the committee or by the Supreme Court may be appointed. At the request of the Governor, the Senate Committee on Rules, or the Speaker of the Assembly, the Supreme Court will reconsider a finding by the committee that a particular applicant is not recommended. The Supreme Court may make such orders as to the appointment of applicants as it deems appropriate, including extending the term of incumbent judges pending such order or providing for staggered terms.

(Subd (c) amended effective January 1, 2009; adopted effective February 15, 1995; previously amended effective July 1, 2000, and January 1, 2007.)

(d) Discipline for misconduct or disability

A judge of the State Bar Court is subject to discipline or retirement on the same grounds as a judge of a court of this state. Complaints concerning the conduct of a judge of the State Bar Court must be addressed to the Executive Director-Chief Counsel of the Commission on Judicial Performance, who is the Supreme Court's investigator for the purpose of evaluating those complaints, conducting any necessary further investigation, and determining whether formal proceedings should be instituted. If there is reasonable cause to institute formal proceedings, the investigator must notify the Supreme Court of that fact and must serve as or appoint the examiner and make other appointments and arrangements necessary for the hearing. The Supreme Court will then appoint one or more active or retired judges of superior courts or Courts of Appeal as its special master or masters to hear the complaint and the results of the investigation, and to report to the Supreme Court on the resulting findings, conclusions, and recommendations as to discipline. The procedures of the Commission on Judicial Performance must be followed by the investigator and special masters, to the extent feasible. The procedures in the Supreme Court after a discipline recommendation is filed will, to the extent feasible, be the same as the procedures followed when a determination of the Commission on Judicial Performance is filed.

(Subd (d) amended effective January 1, 2007; adopted as subd (b) effective December 1, 1990; relettered effective February 15, 1995; previously amended effective July 1, 2000.)

Rule 9.11 amended effective December 1, 2023; adopted as rule 961 effective December 1, 1990; previously amended February 15, 1995, July 1, 2000, January 1, 2009, January 1, 2019, and July 1, 2022; previously amended and renumbered effective January 1, 2007

Rule 9.12. Standard of review for State Bar Court Review Department

In reviewing the decisions, orders, or rulings of a hearing judge under rule 5.151 of the Rules of Procedure of the State Bar of California or such other rule as may be adopted governing the review of any decisions, orders, or rulings by a hearing judge that fully disposes of an entire proceeding, the Review Department of the State Bar Court must independently review the record and may adopt findings, conclusions, and a decision or recommendation different from those of the hearing judge.

Rule 9.12 amended effective October 1, 2025; adopted as rule 951.5 by the Supreme Court effective February 23, 2000; previously amended and renumbered effective January 1, 2007.

Rule 9.13. Petitions for review by licensees of State Bar Court decisions and review of other State Bar decisions

(a) Review of recommendation of disbarment or suspension

A petition to the Supreme Court by a licensee to review a decision of the State Bar Court recommending his or her disbarment or suspension from practice must be served and filed within 60 days after a certified copy of the decision complained of is filed with the Clerk of the Supreme Court. The State Bar may serve and file an answer to the petition within 20 days after filing of the petition. Within 10 days after filing of the answer, the petitioner may serve and file a reply.

(Subd (a) amended effective October 1, 2025; previously relettered and amended effective October 1, 1973; previously amended effective July 1, 1968, December 1, 1990, January 7, 2007, and January 1, 2019.)

(b) Review of recommendation to set aside stay of suspension or modify probation

A petition to the Supreme Court by a licensee to review a recommendation of the State Bar Court that a stay of an order of suspension be set aside or that the duration or conditions of probation be modified on account of a violation of probation must be served and filed within 15 days after a certified copy of the recommendation complained of is filed with the Clerk of the Supreme Court. Within 15 days after filing of the petition, the State Bar may serve and file an answer. Within 5 days after filing of the answer, the petitioner may serve and file a reply.

(Subd (b) amended effective January 1, 2019; adopted effective October 1, 1973; previously amended effective December 1, 1990; and January 1, 2007.)

(c) Review of interim decisions

A petition to the Supreme Court by a licensee to review a decision of the State Bar Court regarding interim suspension, the exercise of powers delegated by rule 9.10(b)–(e), or another interlocutory matter must be served and filed within 15 days

after written notice of the adverse decision of the State Bar Court is mailed by the State Bar to the petitioner and to his or her counsel of record, if any, at their respective addresses under Business and Professions Code section 6002.1. Within 15 days after filing of the petition, the State Bar may serve and file an answer. Within 5 days after filing of the answer, the petitioner may serve and file a reply. *(Subd (c) amended effective October 1, 2025; adopted effective December 1, 1990; previously amended effective January 1, 2007, and January 1, 2019.)*

(d) Review of other decisions

A petition to the Supreme Court to review any other decision of the State Bar Court or action of the Board of Trustees of the State Bar, or of any board or committee appointed by it and authorized to make a determination under the provisions of the State Bar Act, or of the chief executive officer of the State Bar or the designee of the chief executive officer authorized to make a determination under article 10 of the State Bar Act or these rules of court, must be served and filed within 60 days after written notice of the action complained of is mailed to the petitioner and to his or her counsel of record, if any, at their respective addresses under Business and Professions Code section 6002.1. Within 20 days after filing of the petition, the State Bar may serve and file an answer and brief. Within 10 days after filing of the answer and brief, the petitioner may serve and file a reply.

(Subd (d) amended effective October 1, 2025; previously amended effective July 1, 1968, May 1, 1986, April 2, 1987, January 1, 2007, and January 1, 2019; previously relettered and amended effective October 1, 1973, and December 1, 1990.)

(e) Contents of petition

- (1) A petition to the Supreme Court filed under (a) or (b) of this rule must be verified, must specify the grounds relied upon, must show that review within the State Bar Court has been exhausted, must address why review is appropriate under one or more of the grounds specified in rule 9.16, and must have attached a copy of the State Bar Court decision from which relief is sought.
- (2) When review is sought under (c) or (d) of this rule, the petition must also be accompanied by a record adequate to permit review of the ruling, including:
 - (A) Legible copies of all documents and exhibits submitted to the State Bar Court or the State Bar supporting and opposing petitioner's position;
 - (B) Legible copies of all other documents submitted to the State Bar Court or the State Bar that are necessary for a complete understanding of the case and the ruling; and
 - (C) A transcript of the proceedings in the State Bar Court leading to the decision or, if a transcript is unavailable, a declaration by counsel

explaining why a transcript is unavailable and fairly summarizing the proceedings, including arguments by counsel and the basis of the State Bar Court's decision, if stated; or a declaration by counsel stating that the transcript has been ordered, the date it was ordered, and the date it is expected to be filed, which must be a date before any action is requested from the Supreme Court other than issuance of a stay supported by other parts of the record.

- (3) A petitioner who requests an immediate stay must explain in the petition the reasons for the urgency and set forth all relevant time constraints.
- (4) If a petitioner does not submit the required record, the court may summarily deny the stay request, the petition, or both.

(Subd (e) amended effective January 1, 2019; previously repealed and adopted by the Supreme Court effective December 1, 1990, and February 1, 1991; previously repealed and adopted effective March 15, 1991; previously amended effective January 1, 2007.)

(f) Service

All petitions, briefs, reply briefs, and other pleadings filed by a petitioner under this rule must be accompanied by proof of service of one copy on the General Counsel of the State Bar at the San Francisco or the Los Angeles office of the State Bar, and of one copy on the Clerk of the State Bar Court at the Los Angeles office of the State Bar Court. The State Bar must serve the licensee at the address of record under Business and Professions Code section 6002.1, and counsel of record, if any.

(Subd (f) amended effective October 1, 2025; adopted by the Supreme Court effective December 1, 1990; previously amended by the Supreme Court effective February 1, 1991; March 15, 1991, January 1, 2007, and January 1, 2019.)

Rule 9.13 amended effective October 1, 2025; adopted as rule 59 by the Supreme Court effective April 20, 1943, and by the Judicial Council effective July 1, 1943; previously amended and renumbered as rule 952 effective October 1, 1973, and as 9.13 effective January 1, 2007; previously amended effective July 1, 1976, May 1, 1986, April 2, 1987, December 1, 1990, February 1, 1991, March 15, 1991, and January 1, 2019.

Rule 9.14. Petitions for review by the Chief Trial Counsel of State Bar Court decisions

(a) Time for filing a petition

The Chief Trial Counsel may petition for review of recommendations and decisions of the State Bar Court as follows:

- (1) From recommendations that a licensee be suspended, within 60 days of the date the recommendation is filed with the Supreme Court.
- (2) From recommendations that the duration or conditions of probation be modified, or a reinstatement application be granted, within 15 days of the date the recommendation is filed with the Supreme Court.
- (3) From decisions not to place an eligible licensee on interim suspension, or vacating interim suspension, or a denial of a petition brought under Business and Professions Code section 6007, subdivision (c), within 15 days of notice under the rules adopted by the State Bar.
- (4) From decisions dismissing disciplinary proceedings or recommending approval, within 60 days of notice under the rules adopted by the State Bar.

(Subd (a) amended effective October 1, 2025; adopted effective March 15, 1991; previously adopted by the Supreme Court effective December 10, 1990; previously amended effective January 1, 2007, and January 1, 2019.)

(b) Subsequent briefs

Within 20 days after the filing of the petition under this rule, the licensee may serve and file an answer. Within 10 days after the filing of the answer, the Chief Trial Counsel may serve and file a reply.

(Subd (b) adopted effective October 1, 2025.)

(c) Service

All petitions, briefs, reply briefs, and other pleadings filed by the Chief Trial Counsel under this rule must be accompanied by proof of service on the licensee at the address of record under Business and Professions Code section 6002.1, and counsel of record, if any. All briefs and other pleadings filed by the licensee under this rule must be accompanied by proof of service of one copy on the General Counsel of the State Bar at the San Francisco or the Los Angeles office of the State Bar, and of one copy on the Clerk of the State Bar Court at the Los Angeles office of the State Bar Court.

(Subd (c) adopted effective October 1, 2025.)

Rule 9.14 amended effective October 1, 2025; adopted as rule 952.5 effective March 15, 1991; previously amended and renumbered effective January 1, 2007; previously amended effective January 1, 2019.

Rule 9.15. Petitions for review by State Bar in moral character proceedings

(a) Petition for review by the State Bar

The State Bar may petition for review of the decision of the Review Department of the State Bar Court in moral character proceedings. All petitions under this rule must be served and filed with the Clerk of the Supreme Court within 60 days after the State Bar Court decision is filed and served on the General Counsel of the State Bar at the San Francisco or the Los Angeles office of the State Bar. The applicant may file and serve an answer within 20 days after filing of the petition. Within 10 days after filing of the answer the State Bar may serve and file a reply.

(Subd (a) amended effective October 1, 2025; previously amended effective January 1, 2007, and January 1, 2019.)

(b) Contents of petition

A petition to the Supreme Court filed under this rule must show that review within the State Bar Court has been exhausted, must address why review is appropriate under one or more of the grounds specified in rule 9.16, and must have attached a copy of the State Bar Court decision for which review is sought.

(Subd (b) amended effective January 1, 2007.)

(c) Service

All petitions, briefs, reply briefs, and other pleadings filed by the State Bar must include a proof of service by mail to the applicant's last address provided to the State Bar or the applicant's attorney of record, if any. Filings by the applicant must include a proof of service of one copy on the General Counsel of the State Bar at the San Francisco or the Los Angeles office of the State Bar and one copy on the Clerk of the State Bar Court at the Los Angeles office of the State Bar Court.

(Subd (c) amended effective October 1, 2025; previously amended effective April 20, 1998, January 1, 2007, and January 1, 2019.)

(d) Confidentiality

All filings under this rule are confidential unless: (1) the applicant waives confidentiality in writing; or (2) the Supreme Court grants review. Once the Supreme Court grants review, filings under this rule are open to the public; however, if good cause exists, the Supreme Court may order portions of the record or the identity of witnesses or other third parties to the proceedings to remain confidential.

(Subd (d) amended effective January 1, 2007; adopted effective April 20, 1998.)

Rule 9.15 amended effective October 1, 2025; adopted as rule 952.6 by the Supreme Court effective July 1, 1993, and by the Judicial Council May 6, 1998; previously amended by the

Supreme Court effective April 20, 1998, and January 1, 2019; previously amended and renumbered effective January 1, 2007.

Rule 9.16. Grounds for review of State Bar Court decisions in the Supreme Court

(a) Grounds

The Supreme Court will order review of a decision of the State Bar Court recommending disbarment or suspension from practice when it appears:

- (1) Necessary to settle important questions of law;
- (2) The State Bar Court has acted without or in excess of jurisdiction;
- (3) Petitioner did not receive a fair hearing;
- (4) The decision is not supported by the weight of the evidence; or
- (5) The recommended discipline is not appropriate in light of the record as a whole.

(Subd (a) amended effective January 1, 2007; adopted by the Supreme Court effective February 1, 1991.)

(b) Denial of review

Denial of review of a decision of the State Bar Court is a final judicial determination on the merits and the recommendation of the State Bar Court will be filed as an order of the Supreme Court.

(Subd (b) amended effective January 1, 2007; adopted by the Supreme Court effective February 1, 1991.)

Rule 9.16 amended and renumbered effective January 1, 2007; adopted as rule 954 effective February 1, 1991.

Rule 9.16.1. Briefs by parties following grant of review by the Supreme Court

(a) Parties' briefs; time to file

If the Supreme Court grants review of a petition filed pursuant to rules 9.13(a) or (d), 9.14(a), or 9.15(a), the opposing party must serve and file a supplemental brief within 45 days after the order granting review is filed. Within 15 days after filing of the supplemental brief, the petitioner may serve and file a reply brief.

(b) Judicial notice

To obtain judicial notice by the Supreme Court under Evidence Code section 459, a party must comply with rule 8.252(a).

(c) Service

All briefs, reply briefs, and other pleadings filed by a licensee under this rule must be accompanied by proof of service of one copy on the General Counsel of the State Bar at the San Francisco or the Los Angeles office of the State Bar, and of one copy on the Clerk of the State Bar Court at the Los Angeles office of the State Bar Court. The State Bar must serve the licensee at the address of record under Business and Professions Code section 6002.1, and counsel of record, if any.

Rule 9.16.1 adopted effective October 1, 2025.

Rule 9.16.2. Requesting depublication of published State Bar Court opinion

(a) Request

- (1) Any person may request the Supreme Court to order that an opinion certified for publication by the State Bar Court not be published.
- (2) The request must not be made as part of a petition for review, but by a separate letter to the Supreme Court not exceeding 10 pages.
- (3) The request must concisely state the person's interest and the reason why the opinion should not be published.
- (4) The request must be delivered to the Supreme Court within 30 days after the decision is final in the State Bar Court.
- (5) The request must be served on the Clerk of the State Bar Court at the Los Angeles office of the State Bar Court and all parties.

(b) Response

- (1) Within 10 days after the Supreme Court receives a request under (a), the State Bar Court or any person may submit a response supporting or opposing the request. A response submitted by anyone other than the State Bar Court must state the person's interest.
- (2) A response must not exceed 10 pages and must be served on the Clerk of the State Bar Court at the Los Angeles office of the State Bar Court, all parties, and any person who requested depublication.

(c) Action by Supreme Court

- (1) The Supreme Court may order the State Bar Court to depublish the opinion or deny the request. It must send notice of its action to the Clerk of the State Bar Court at the Los Angeles office of the State Bar Court, all parties, and any person who requested depublication.
- (2) The Supreme Court, on its own motion, may order the State Bar Court to depublish an opinion, notifying the State Bar Court of its action.

(d) Effect of Supreme Court order to depublish

A Supreme Court order to depublish is not an expression of the court's opinion of the correctness of the result of the decision or of any law stated in the opinion. An opinion ordered depublished must not be cited or relied on by a court or a party in any other action. A depublished opinion may be cited when relevant under the doctrines of law of the case, res judicata, or collateral estoppel or if the opinion is relevant to a criminal or disciplinary action because it states reasons for a decision affecting the same defendant or respondent in another such action.

Rule 9.16.2 adopted effective October 1, 2025.

Rule 9.17. Remand with instructions

The Supreme Court may at any time remand a matter filed under this chapter to the State Bar Court or the State Bar with instructions to take such further actions or conduct such further proceedings as the Supreme Court deems necessary.

Rule 9.17 amended effective January 1, 2019; adopted as rule 953.5 effective February 1, 1991; previously amended and renumbered effective January 1, 2007.

Rule 9.18. Effective date of disciplinary orders and decisions

(a) Effective date of Supreme Court orders

Unless otherwise ordered, all orders of the Supreme Court imposing discipline or opinions deciding causes involving the State Bar become final 30 days after filing. The Supreme Court may grant a rehearing at any time before the decision or order becomes final. Petitions for rehearing must be served and filed within 15 days after the date the decision or order was filed. Unless otherwise ordered, when petitions for review under rules 9.13(c) and 9.14(a)(3) are acted upon summarily, the orders of the Supreme Court are final forthwith and do not have law-of-the-case effect in subsequent proceedings in the Supreme Court.

(Subd (a) amended effective January 1, 2019; adopted effective March 15, 1991; previously adopted by the Supreme Court effective December 1, 1990; previously amended effective January 1, 2007.)

(b) Effect of State Bar Court orders when no review sought

Unless otherwise ordered, if no petition for review is filed within the time allowed by rule 9.13(a), (b), and (d), or rule 9.14(a)(1) and (2), as to a recommendation of the State Bar Court for the disbarment, suspension, or reinstatement of a licensee, the vacation of a stay, or modification of the duration or conditions of a probation, the recommendation of the State Bar Court will be filed as an order of the Supreme Court following the expiration of the time for filing a timely petition. The Clerk of the Supreme Court will mail notice of this effect to the licensee and his or her attorney of record, if any, at their respective addresses under Business and Professions Code section 6002.1 and to the State Bar.

(Subd (b) amended effective January 1, 2019; adopted effective March 15, 1991; previously adopted by the Supreme Court effective December 1, 1990; previously amended effective January 1, 2007.)

(c) Effect of State Bar Court orders in moral character proceedings when no review sought

Unless otherwise ordered, if no petition for review is filed within the time allowed by rule 9.15(a), as to a recommendation of the State Bar Court in moral character proceedings, the recommendation of the State Bar Court will be filed as an order of the Supreme Court following the expiration of the time for filing a timely petition. The Clerk of the Supreme Court will mail notice of this effect to the applicant's last address provided to the State Bar or to the applicant's attorney of record, if any, and to the State Bar.

(Subd (c) amended effective January 1, 2007.)

Rule 9.18 amended effective January 1, 2019; adopted as rule 953 effective March 15, 1991; previously amended effective February 1, 1996; previously amended and renumbered effective January 1, 2007.

Rule 9.19. Conditions attached to reprovals

(a) Attachment of conditions to reprovals

The State Bar may attach conditions, effective for a reasonable time, to a public or private reproof administered upon a licensee of the State Bar. Conditions so attached must be based on a finding by the State Bar that protection of the public and the interests of the licensee will be served thereby. The State Bar when administering the reproof must give notice to the licensee that failure to comply with the conditions may be punishable.

(Subd (a) amended effective January 1, 2019; previously amended effective January 1, 2007.)

(b) Sanctions for failure to comply

A licensee's failure to comply with conditions attached to a public or private reproof may be cause for a separate proceeding for willful breach of 8.1.1 of the Rules of Professional Conduct.

(Subd (b) amended effective January 1, 2019; previously amended effective January 1, 2007.)

Rule 9.19 amended effective January 1, 2019; previously amended and renumbered effective January 1, 2007; adopted as rule 956 effective November 18, 1983.

Rule 9.20. Duties of disbarred, resigned, or suspended attorneys

(a) Disbarment, suspension, and resignation orders

The Supreme Court may include in an order disbarring or suspending a licensee of the State Bar, or accepting his or her resignation, a direction that the licensee must, within such time limits as the Supreme Court may prescribe:

- (1) Notify all clients being represented in pending matters and any co-counsel of his or her disbarment, suspension, or resignation and his or her consequent disqualification to act as an attorney after the effective date of the disbarment, suspension, or resignation, and, in the absence of co-counsel, also notify the clients to seek legal advice elsewhere, calling attention to any urgency in seeking the substitution of another attorney or attorneys;
- (2) Deliver to all clients being represented in pending matters any papers or other property to which the clients are entitled, or notify the clients and any co-counsel of a suitable time and place where the papers and other property may be obtained, calling attention to any urgency for obtaining the papers or other property;
- (3) Refund any part of fees paid that have not been earned; and
- (4) Notify opposing counsel in pending litigation or, in the absence of counsel, the adverse parties of the disbarment, suspension, or resignation and consequent disqualification to act as an attorney after the effective date of the disbarment, suspension, or resignation, and file a copy of the notice with the court, agency, or tribunal before which the litigation is pending for inclusion in the respective file or files.

(Subd (a) amended effective January 1, 2019; previously amended effective December 1, 1990, and January 1, 2007.)

(b) Notices to clients, co-counsel, opposing counsel, and adverse parties

All notices required by an order of the Supreme Court or the State Bar Court under this rule must be given by registered or certified mail, return receipt requested, and must contain an address where communications may be directed to the disbarred, suspended, or resigned licensee.

(Subd (b) amended effective January 1, 2019; previously amended effective December 1, 1990, and January 1, 2007.)

(c) Filing proof of compliance

Within such time as the order may prescribe after the effective date of the licensee's disbarment, suspension, or resignation, the licensee must file with the Clerk of the State Bar Court an affidavit showing that he or she has fully complied with those provisions of the order entered under this rule. The affidavit must also specify an address where communications may be directed to the disbarred, suspended, or resigned licensee.

(Subd (c) amended effective January 1, 2019; previously amended effective December 1, 1990, and January 1, 2007.)

(d) Sanctions for failure to comply

A disbarred or resigned licensee's willful failure to comply with the provisions of this rule is a ground for denying his or her application for reinstatement or readmission. A suspended licensee's willful failure to comply with the provisions of this rule is a cause for disbarment or suspension and for revocation of any pending probation. Additionally, such failure may be punished as a contempt or a crime.

(Subd (d) amended effective January 1, 2019; previously amended effective January 1, 2007; previously relettered and amended effective December 1, 1990.)

Rule 9.20 amended effective January 1, 2019; previously amended and renumbered effective January 1, 2007; adopted as rule 955 effective April 4, 1973; previously amended effective December 1, 1990.

Rule 9.21. Resignations of licensees of the State Bar with disciplinary charges pending

(a) General provisions

A licensee of the State Bar against whom disciplinary charges are pending may tender a written resignation from the State Bar and relinquishment of the right to practice law. The written resignation must be signed and dated by the licensee at the time it is tendered and must be tendered to the Office of the Clerk, State Bar Court, 845 S. Figueroa Street, Los Angeles, California 90017. The resignation must be substantially in the form specified in (b) of this rule. In submitting a resignation

under this rule, a licensee of the State Bar agrees to be transferred to inactive status in the State Bar effective on the filing of the resignation by the State Bar. Within 30 days after filing of the resignation, the licensee must perform the acts specified in rule 9.20(a)(1)–(4) and (b) and within 40 days after filing of the resignation, the licensee must file with the Office of the Clerk, State Bar Court, at the above address, the proof of compliance specified in rule 9.20(c). No resignation is effective unless and until it is accepted by the Supreme Court after consideration and recommendation by the State Bar Court.

(Subd (a) amended effective January 1, 2021; previously amended effective January 1, 2007, January 1, 2010, and January 1, 2019.)

(b) Form of resignation

The licensee’s written resignation must be in substantially the following form:

“I, [*name of licensee*,] against whom charges are pending, hereby resign from the State Bar of California and relinquish all right to practice law in the State of California. I agree that, in the event that this resignation is accepted and I later file a petition for reinstatement, the State Bar will consider in connection therewith all disciplinary matters and proceedings against me at the time this resignation is accepted, in addition to other appropriate matters, I also agree that the Supreme Court may decline to accept my resignation unless I reach agreement with the Chief Trial Counsel on a written stipulation as to facts and conclusions of law regarding the disciplinary matters and proceedings that were pending against me at the time of my resignation. I further agree that, on the filing of this resignation by the Office of the Clerk, State Bar Court, I will be transferred to inactive status with the State Bar. On such transfer, I acknowledge that I will be ineligible to practice law or to advertise or hold myself out as practicing or as entitled to practice law. I further acknowledge that in the event the Supreme Court does not accept my resignation, I will remain an inactive licensee of the State Bar, pending any further order of the Supreme Court or the State Bar Court. I further agree that, within 30 days of the filing of the resignation by the Office of the Clerk, State Bar Court, I will perform the acts specified in rule 9.20(a)–(b) of the California Rules of Court, and within 40 days of the date of filing of this resignation by the Office of the Clerk, State Bar Court, I will notify that office as specified in rule 9.20(c) of the California Rules of Court.

(Subd (b) amended effective January 1 2019; previously amended effective January 1, 2007, January 1, 2010, and January 1, 2014.)

(c) Consideration of resignation by State Bar Court and Supreme Court

When the Office of the Clerk of the State Bar Court receives a licensee’s resignation tendered in conformity with this rule, it must promptly file the resignation. The State Bar Court must thereafter consider the licensee’s resignation and the stipulated facts and conclusions of law, if any, agreed upon between the

licensee and the Chief Trial Counsel, and must recommend to the Supreme Court whether the resignation should be accepted. The State Bars Court's recommendation must be made in light of the grounds set forth in d) of this rule and, if the State Bar Court recommends acceptance of the resignation notwithstanding the existence of one or more of the grounds set forth in subsection (d), the State Bar Court's recommendation must include an explanation of the reasons for the recommendation that the resignation be accepted. The Office of the Clerk of the State Bar Court must transmit to the Clerk of the Supreme Court, three certified copies of the State Bar Court's recommendation together with the licensee's resignation, when, by the terms of the State Bar Court's recommendation, the resignation should be transmitted to the Supreme Court.

(Subd (c) amended effective January 1, 2019; previously amended effective January 1, 2007, and January 1, 2010.)

(d) Grounds for rejection of resignation by the Supreme Court

The Supreme Court will make such orders concerning the licensee's resignation as it deems appropriate. The Supreme Court may decline to accept the resignation based on a report by the State Bar Court that:

- (1) Preservation of necessary testimony is not complete;
- (2) After transfer to inactive status, the licensee has practiced law or has advertised or held himself or herself out as entitled to practice law;
- (3) The licensee has failed to perform the acts specified by rule 9.20(a)–(b);
- (4) The licensee has failed to provide proof of compliance as specified in rule 9.20(c);
- (5) The Supreme Court has filed an order of disbarment as to the licensee;
- (6) The State Bar Court has filed a decision or opinion recommending the licensee's disbarment;
- (7) The licensee has previously resigned or has been disbarred and reinstated to the practice of law;
- (8) The licensee and the Chief Trial Counsel have not reached agreement on a written stipulation as to facts and conclusions of law regarding the disciplinary matters and proceedings that were pending against the licensee at the time the resignation was tendered; or
- (9) Acceptance of the resignation of the licensee will reasonably be inconsistent with the need to protect the public, the courts, or the legal profession.

(Subd (d) amended effective January 1, 2019; previously amended effective January 1, 2010; previously amended and relettered effective January 1, 2007; adopted as part of subd (c) effective December 14, 1984.)

(e) Rejection of resignation by the Supreme Court

A licensee whose resignation with charges pending is not accepted by the Supreme Court will remain an inactive licensee of the State Bar. The licensee may move the Review Department of the State Bar Court to be restored to active status, at which time the Office of the Chief Trial Counsel may demonstrate any basis for the licensee's continued ineligibility to practice law. The Review Department will expedite a motion to be restored to active status. Any return to active status will be conditioned on the licensee's payment of any due, penalty payments, and restitution owed by the licensee.

(Subd (e) amended effective January 1, 2019; adopted effective January 1, 2014.)

Rule 9.21 amended effective January 1, 2021; adopted as rule 960 by the Supreme Court effective December 14, 1984; previously amended and renumbered effective January 1, 2007; previously amended effective January 1, 2010, January 1, 2014, and January 1, 2019.

Rule 9.22. Suspension of licensees of the State Bar for failure to comply with judgment or order for child or family support

(a) State Bar recommendation for suspension of delinquent licensees

Under Family Code section 17520, the State Bar is authorized to transmit to the Supreme Court twice a year the names of those licensees listed by the State Department of Child Support Services as delinquent in their payments of court-ordered child or family support with a recommendation for their suspension from the practice of law.

(Subd (a) amended effective October 20, 2023; previously amended effective January 1, 2007 and January 1, 2019.)

(b) Conditions for reinstatement of a suspended licensees

The Supreme Court may reinstate a licensee suspended under this rule only after receipt by the Supreme Court of notification from the State Bar that the licensee's name has been removed from the State Department of Child Support Services list as provided in Family Code section 17520(h) and that the licensee has submitted a declaration under penalty of perjury stating whether the licensee practiced law during the suspension.

(Subd (b) amended effective October 1, 2025; adopted as part of subd (a) effective January 31, 1993; previously amended and lettered effective January 1, 2007; previously amended effective January 1, 2019, and October 20, 2023.)

(c) Subsequent recommendation for suspension by the State Bar

Under Family Code section 17520(l), the State Bar is further authorized to promptly transmit to the Supreme Court with a recommendation for their suspension from the practice of law the name of any licensee previously listed by the State Department of Child Support Services as delinquent in their payments of court-ordered child or family support, who has been reinstated under (b) of this rule and who has subsequently been identified by the Department of Child Support Services as again being delinquent.

(Subd (c) amended effective October 1, 2025; adopted as part of subd (a) effective January 31, 1993; previously amended and lettered effective January 1, 2007; previously amended effective January 1, 2019, and October 20, 2023.)

(d) Compliance with Rule 9.20(a)-(c)

A licensee suspended under this rule must comply with the requirements of rule 9.20 in connection with an initial suspension under (a) of this rule and any subsequent suspension under (c) of this rule.

(Subd (d) adopted effective October 20, 2023.)

(e) Authorization for the Board of Trustees of the State Bar to adopt rules

The Board of Trustees of the State Bar is authorized to adopt such rules as it deems necessary and appropriate in order to comply with this rule. The rules of the State Bar must contain procedures governing the notification, suspension, and reinstatement of licensees of the State Bar in a manner not inconsistent with Family Code section 17520.

(Subd (e) amended and relettered effective October 20, 2023; adopted as subd (b) effective January 31, 1993; previously amended and relettered as subd (d) effective January 1, 2007; previously amended effective January 1, 2019.)

Rule 9.22 amended effective October 1, 2025; adopted as rule 962 effective January 31, 1993; previously amended by the Supreme Court effective April 1, 1996, January 1, 2019, and October 20, 2023; previously amended and renumbered effective January 1, 2007.

Rule 9.23. Enforcement of disciplinary orders and final determinations by Client Security Fund as money judgments

(a) Authority to obtain money judgment

Pursuant to Business and Professions Code section 6086.10(a), the State Bar is authorized to enforce as a money judgment any disciplinary order assessing costs.

Pursuant to Business and Professions Code section 6086.13(c) and the State Bar Rules of Procedure, Rule 5.137, the State Bar is authorized to enforce as a money judgment any monetary sanctions order. Pursuant to Business and Professions Code section 6140.5(f), the State Bar is authorized to enforce as a money judgment any disciplinary order or final determination by the Client Security Fund requiring reimbursement to the State Bar Client Security Fund.

(Subd (b) amended effective April 1, 2022.)

(b) Duty of clerk of the superior court

The State Bar may file with the clerk of the superior court of any county a certified copy of a final disciplinary order: (1) assessing costs along with a certified copy of the certificate of costs, (2) assessing monetary sanctions, or (3) requiring reimbursement to the Client Security Fund along with any record of interest accrued and processing costs, and a certified copy of the Notice of Payment of the Client Security Fund. The State Bar may also file with the clerk of the superior court of any county a certified copy of the Notice of Payment of the Client Security Fund requiring reimbursement to the Client Security Fund along with any record of interest accrued and processing costs. The clerk must immediately enter a money judgment in conformity with the order or the Notice of Payment.

(Subd (b) amended effective April 1, 2022; previously amended effective January 1, 2019.)

(c) Amend, vacate or stay the enforcement of a money judgment

The State Bar has 180 days from the date a money judgment is entered by the clerk under this rule to file a motion to amend, vacate, or stay the enforcement of the money judgment in the superior court with jurisdiction. Defendant has 180 days from the date of service of notice of entry of judgment to file a motion to amend, vacate, or stay the enforcement of the money judgment in the superior court with jurisdiction. The State Bar may also file a motion to amend, vacate, or stay the enforcement of a money judgment entered under this rule at any time in the superior court with jurisdiction for the benefit of the defendant.

(Subd (c) adopted effective April 1, 2022.)

(d) Compromise of a money judgment

Motions for the compromise of any money judgment entered under this rule for costs ordered pursuant to Business and Professions Code section 6086.10(a) and monetary sanctions ordered pursuant to Business and Professions Code section 6086.13(a) must, in the first instance, be filed and heard by the State Bar Court.

(Subd (d) relettered and amended effective April 1, 2022; adopted by the Supreme Court as subd (c) effective April 1, 2007.)

(e) Power of the Supreme Court

Nothing in this rule may be construed as affecting the power of the Supreme Court to alter the amounts owed.

(Subd (e) relettered and amended effective April 1, 2022; adopted by the Supreme Court as subd (d) effective April 1, 2007.)

Rule 9.23 amended effective April 1, 2022; adopted by the Supreme Court effective April 1, 2007; previously amended effective January 1, 2019.

Rule 9.24. Professional Responsibility Examination

(a) Professional Responsibility Examination following suspension

Any order suspending a licensee from the practice of law, or any order in which suspension is stayed and the licensee is placed on probation, may further require the licensee to demonstrate that they know, understand, and can apply the principles of legal ethics by passing a professional responsibility examination.

(b) Inherent jurisdiction over practice of law

Nothing in this rule may be construed as affecting the power of the Supreme Court to exercise its inherent jurisdiction over the practice of law in this state.

Rule 9.24 adopted effective December 1, 2025.

Chapter 4. Legal Education

Rule 9.30. Law school study in schools other than those accredited by the Committee of Bar Examiners

Rule 9.31. Minimum continuing legal education

Rule 9.32 New Attorney Training

Rule 9.30. Law school study in schools other than those accredited by the Committee of Bar Examiners

(a) Receipt of credit

A person who seeks to be certified to the Supreme Court for admission in and licensed to practice law under section 6060(e)(2) of the Business and Professions Code may receive credit for:

- (1) Study in a law school in the United States other than one accredited by the Committee of Bar Examiners only if the law school satisfies the requirements of (b) or (c) of this rule; or
- (2) Instruction in law from a correspondence school only if the correspondence school requires 864 hours of preparation and study per year for four years and satisfies the requirements of (d) of this rule; or
- (3) Study in a law school outside the United States other than one accredited by the Committee of Bar Examiners only if the Committee of Bar Examiners is satisfied that the academic program of such law school is substantially equivalent to that of a law school qualified under (b) of this rule.

(Subd (a) amended effective October 1, 2025; previously amended effective April 2, 1984, January 1, 2007, and January 1, 2019.)

(b) Requirements for unaccredited law schools in state

A law school in this state that is not accredited by the Committee of Bar Examiners must:

- (1) Be authorized to confer professional degrees by the laws of this state;
- (2) Maintain a regular course of instruction in law, with a specified curriculum and regularly scheduled class sessions;
- (3) Require classroom attendance of its students for a minimum of 270 hours a year for at least four years, and further require regular attendance of each student at not less than 80 percent of the regularly scheduled class hours in each course in which such student was enrolled and maintain attendance records adequate to determine each student's compliance with these requirements;
- (4) Maintain, in a fixed location, physical facilities capable of accommodating the classes scheduled for that location;
- (5) Have an adequate faculty of instructors in law. The faculty will prima facie be deemed adequate if at least 80 percent of the instruction in each academic period is by persons who possess one or more of the following qualifications:
 - (A) Admission to the general practice of the law in any jurisdiction in the United States;
 - (B) Judge of a United States court or a court of record in any jurisdiction in the United States; or

- (C) Graduation from a law school accredited by the Committee of Bar Examiners..
- (6) Own and maintain a library consisting of at least those materials identified by the Committee of Bar Examiners in the rules or guidelines for unaccredited law schools.
- (7) Establish and maintain standards for academic achievement, advancement in good standing and graduation, and provide for periodic testing of all students to determine the quality of their performance in relation to such standards; and
- (8) Register with the Committee of Bar Examiners, and maintain such records (available for inspection by the Committee of Bar Examiners) and file with the Committee of Bar Examiners such reports, notices, and certifications as may be required by the rules of the Committee of Bar Examiners.

(Subd (b) amended effective October 1, 2025; previously amended effective April 2, 1984, January 1, 2007.)

(c) Requirements for unaccredited law schools outside the state

A law school in the United States that is outside the state of California and is not accredited by the Committee of Bar Examiners must:

- (1) Be authorized to confer professional degrees by the law of the state in which it is located;
- (2) Comply with (b)(2), (3), (4), (5), (7), and (8) of this rule; and
- (3) Own and maintain a library that is comparable in content to that specified in (b)(6) of this rule.

(Subd (c) amended effective October 1, 2025; previously amended effective April 2, 1984, and January 1, 2007.)

(d) Registration and reports

A correspondence law school must register with the Committee of Bar Examiners and file such reports, notices, and certifications as may be required by the rules of the Committee of Bar Examiners concerning any person whose mailing address is in the state of California or whose application to, contract with, or correspondence with or from the law school indicates that the instruction by correspondence is for the purpose or with the intent of qualifying that person for admission to practice law in California.

(Subd (d) amended effective October 1, 2025; previously amended effective January 1, 2007.)

(e) Inspections

The Committee of Bar Examiners may make such inspection of law schools not accredited by the committee or correspondence schools as may be necessary or proper to give effect to the provisions of Business and Professions Code section 6060, this rule, and the rules of the Committee of Bar Examiners.

(Subd (e) amended effective October 1, 2025; previously amended effective January 1, 2007.)

(f) Application

This rule does not apply to any person who, on the effective date of the rule, had commenced the study of law in a manner authorized by Business and Professions Code section 6060(e) and registered as a law student before January 1, 1976 (as provided in Business and Professions Code section 6060(d) and otherwise satisfies the requirements of Business and Professions Code section 6060(e), provided that after January 1, 1976, credit will be given such person for any study in an unaccredited law school or by correspondence only if the school complies with the requirements of (b)(8) or (d) of this rule, whichever is applicable, and permits inspection under (e) of this rule.

(Subd (f) amended effective January 1, 2007.)

Rule 9.30 amended effective October 1, 2025; adopted as rule 957 by the Supreme Court effective October 8, 1975; previously amended effective April 2, 1984, and January 1, 2019; previously amended and renumbered effective January 1, 2007.

Rule 9.31. Minimum continuing legal education

(a) Statutory authorization

This rule is adopted under Business and Professions Code section 6070.

(Subd (a) amended effective January 1, 2007.)

(b) State Bar minimum continuing legal education program

The State Bar must establish and administer a minimum continuing legal education program under rules adopted by the Board of Trustees. These rules may provide for carryforward of excess credit hours, staggering of the education requirement for implementation purposes, and retroactive credit for legal education.

(Subd (b) amended effective October 1, 2025; previously amended effective September 27, 2000, January 1, 2007, and August 1, 2017.)

(c) Minimum continuing legal education requirements

Each active licensee of the State Bar (1) not exempt under Business and Professions Code section 6070, (2) not a full-time employee of the United States Government, its departments, agencies, and public corporations, acting within the scope of his or her employment, and (3) not otherwise exempt under rules adopted by the Board of Trustees, must, within 36-month periods designated by the State Bar, complete at least 25 hours of legal education approved by the State Bar or offered by a State Bar-approved provider. Four of those hours must address legal ethics. Licensees may be required to complete legal education in other specified areas within the 25-hour requirement under rules adopted by the State Bar. Each active licensee must report his or her compliance to the State Bar under rules adopted by the Board of Trustees.

(Subd (c) amended effective October 1, 2025; previously amended effective September 27, 2000, January 1, 2007, August 1, 2017, and August 1, 2019.)

(d) Failure to comply with program

A licensee of the State Bar who fails to satisfy the requirements of the State Bar's minimum continuing legal education program must be enrolled as an inactive licensee of the State Bar under rules adopted by the Board of Trustees.

(Subd (d) amended effective October 1, 2025; previously amended effective January 1, 2007, August 1, 2017, and January 1, 2019.)

(e) Fees and penalties

The State Bar has the authority to set and collect appropriate fees and penalties.

(Subd (e) amended effective January 1, 2007.)

(f) One-time expungement of a record of inactive enrollment for failure to comply with program

The State Bar is authorized to expunge a public record of a period of inactive enrollment for failure to comply with the minimum continuing legal education program for those licensees who meet all of the following criteria:

- (1) The licensee has not on any previous occasion obtained an expungement under the terms of this rule or rule 9.8(b);
- (2) The period of inactive enrollment was for 90 days or less;

- (3) The period of inactive enrollment ended at least seven years before the date of expungement;
- (4) The licensee has no other record of suspension or involuntary inactive enrollment for discipline or otherwise.

(Subd (f) amended effective October 1, 2025; adopted effective August 1, 2017; previously amended effective January 1, 2019.)

(g) Records to be maintained by State Bar

Under (f) of this rule, the State Bar will remove or delete the record of such period of inactive enrollment from the licensee's record. Notwithstanding any other provision of this rule, the State Bar must maintain such internal records as are necessary to apply the terms of (f) of this rule and to report to the Commission on Judicial Nominees Evaluation or appropriate governmental entities involved in judicial elections the licensee's eligibility for a judgeship under the California Constitution, article VI, section 15.

(Subd (g) amended effective January 1, 2019; adopted effective August 1, 2017.)

(h) Duty of disclosure by licensee

Expungement of the record of a licensee's period of inactive enrollment under (f) of this rule will not relieve the licensee of his or her duty to disclose the period of inactive enrollment for purpose of determining the licensee's eligibility for a judgeship under the California Constitution, article VI, section 15. For all other purposes, the record of inactive enrollment expunged under (f) of this rule is deemed not to have occurred and the licensee may answer accordingly any question relating to his or her record.

(Subd (h) amended effective January 1, 2019; adopted effective August 1, 2017.)

Rule 9.31 amended effective October 1, 2025; adopted as rule 958 effective December 6, 1990; previously amended effective December 25, 1992; previously amended by the Supreme Court effective September 27, 2000, August 1, 2017, and January 1, 2019; previously amended and renumbered as rule 9.31 effective January 1, 2007.

Rule 9.32. New Attorney Training

(a) State Bar New Attorney Training

The State Bar must establish and administer a New Attorney Training program under rules adopted by the Board of Trustees of the State Bar, including Rules of the State Bar of California, rules 2.140-2.144.

(Subd (a) amended effective October 1, 2025.)

(b) State Bar New Attorney Training requirements

All new licensees of the State Bar must, by the last day of the month of their one year anniversary as a State Bar licensee, complete the New Attorney Training program and report having done so as provided in Rules of the State Bar of California, rule 2.141.

(Subd (b) amended effective October 1, 2025.)

(c) Failure to comply with program

A licensee of the State Bar who fails to satisfy the requirements of the State Bar New Attorney Training program will be enrolled as an inactive licensee of the State Bar under rules adopted by the Board of Trustees of the State Bar, including Rules of the State Bar of California, rules 2.150-2.153.

(Subd (c) amended effective October 1, 2025.)

(d) Fees and penalties

The State Bar has the authority to set and collect appropriate fees and penalties.

Rule 9.32 amended effective October 1, 2025; adopted effective January 1, 2024.

Division 3. Legal Specialists

Rule 9.35. Certified legal specialists

Rule 9.35. Certified legal specialists

(a) Definition

A “certified specialist” is a California attorney who holds a current certificate as a specialist issued by the State Bar of California Board of Legal Specialization or any other entity approved by the State Bar to designate specialists.

(b) State Bar Legal Specialization Program

The State Bar must establish and administer a program for certifying legal specialists and may establish a program for certifying entities that certify legal specialists under rules adopted by the Board of Trustees of the State Bar.

(Subd (b) amended effective January 1, 2019; previously amended effective January 1, 2007.)

(c) Authority to practice law

No attorney may be required to obtain certification as a certified specialist as a prerequisite to practicing law in this state. Any attorney, alone or in association with any other attorney, has the right to practice in any field of law in this state and to act as counsel in every type of case, even though he or she is not certified as a specialist.

(Subd (c) amended effective January 1, 2007.)

(d) Failure to comply with program

A certified specialist who fails to comply with the requirements of the Legal Specialization Program of the State Bar will have her or his certification suspended or revoked under rules adopted by the Board of Trustees of the State Bar.

(Subd (d) amended effective January 1, 2019; previously amended effective January 1, 2007.)

(e) Fee and penalty

The State Bar has the authority to set and collect appropriate fees and penalties for this program.

(Subd (e) amended effective January 1, 2007.)

(f) Inherent power of Supreme Court

Nothing in these rules may be construed as affecting the power of the Supreme Court to exercise its inherent jurisdiction over the practice of law in California.

(Subd (f) amended effective January 1, 2007.)

Rule 9.35 amended effective January 1, 2019; adopted as rule 983.5 effective January 1, 1996; amended and renumbered effective January 1, 2007.

Division 4. Appearances and Practice by Individuals Who Are Not Licensees of the State Bar of California

Rule 9.40. Counsel pro hac vice

Rule 9.41. Appearances by military counsel

Rule 9.41.1. Registered military spouse attorney

Rule 9.42. Certified law students

Rule 9.43. Out-of-state attorney arbitration counsel

Rule 9.44. Registered foreign legal consultant

Rule 9.45. Registered legal aid attorneys

Rule 9.46. Registered in-house counsel

Rule 9.47. Attorneys practicing law temporarily in California as part of litigation

Rule 9.48. Nonlitigating attorneys temporarily in California to provide legal services

Rule 9.49. Provisional Licensure of 2020 Law School Graduates

Rule 9.49.1 Provisional Licensure with Pathway to Full Licensure for Certain Individuals

Rule 9.40. Counsel *pro hac vice*

(a) Eligibility

A person who is not a licensee of the State Bar but who is an attorney in good standing of and eligible to practice before the bar of any United States court or the highest court in any state, territory, or insular possession of the United States, and who has been retained to appear in a particular cause pending in a court of this state, may in the discretion of such court be permitted upon written application to appear as counsel *pro hac vice*, provided that an active licensee of the State Bar is associated as attorney of record. No person is eligible to appear as counsel *pro hac vice* under this rule if the person is:

- (1) A resident of the State of California;
- (2) Regularly employed in the State of California; or
- (3) Regularly engaged in substantial business, professional, or other activities in the State of California.

(Subd (a) amended effective October 1, 2025; previously amended effective January 1, 2007, and January 1, 2019.)

(b) Repeated appearances as a cause for denial

Absent special circumstances, repeated appearances by any person under this rule is a cause for denial of an application.

(Subd (b) lettered effective January 1, 2007; adopted as part of subd (a) effective September 13, 1972.)

(c) Application

- (1) *Application in superior court*

A person desiring to appear as counsel *pro hac vice* in a superior court must file with the court a verified application together with proof of service by mail in accordance with Code of Civil Procedure section 1013a of a copy of

the application and of the notice of hearing of the application on all parties who have appeared in the cause and on the State Bar at its San Francisco office. The notice of hearing must be given at the time prescribed in Code of Civil Procedure section 1005 unless the court has prescribed a shorter period.

(2) *Application in Supreme Court or Court of Appeal*

An application to appear as counsel *pro hac vice* in the Supreme Court or a Court of Appeal must be made as provided in rule 8.54, with proof of service on all parties who have appeared in the cause and on the State Bar at its San Francisco office.

(Subd (c) amended effective October 1, 2025; adopted as part of subd (b) effective September 13, 1972; subd (b) previously amended effective October 3, 1973, September 3, 1986, January 17, 1991, and March 15, 1991; previously amended and relettered as subd (b) effective January 1, 2007.)

(d) Contents of application

The application must state:

- (1) The applicant's residence and office address;
- (2) The courts to which the applicant has been admitted to practice and the dates of admission;
- (3) That the applicant is a licensee in good standing in those courts;
- (4) That the applicant is not currently suspended or disbarred in any court;
- (5) The title of each court and cause in which the applicant has filed an application to appear as counsel *pro hac vice* in this state in the preceding two years, the date of each application, and whether or not it was granted; and
- (6) The name, address, and telephone number of the active licensee of the State Bar who is attorney of record.

(Subd (d) amended effective October 1, 2025; adopted as part of subd (b) effective September 13, 1972; subd (b) previously amended effective October 3, 1973, September 3, 1986, January 17, 1991, and March 15, 1991, and January 1, 2019; previously amended and lettered effective January 1, 2007.)

(e) Fee for application

The State Bar may set an appropriate application fee to be paid by counsel *pro hac vice*.

(Subd (e) amended effective October 1, 2025; adopted as subd (c) effective September 3, 1986; previously amended and relettered effective January 1, 2007; previously amended effective January 1, 2019, and July 24, 2024.)

(f) Counsel *pro hac vice* subject to jurisdiction of courts and State Bar

A person permitted to appear as counsel *pro hac vice* under this rule is subject to the jurisdiction of the courts of this state with respect to the law of this state governing the conduct of attorneys to the same extent as a licensee of the State Bar. The counsel *pro hac vice* must familiarize himself or herself and comply with the standards of professional conduct required of licensees of the State Bar and will be subject to the disciplinary jurisdiction of the State Bar with respect to any of his or her acts occurring in the course of such appearance. Article 5 of chapter 4, division 3 of the Business and Professions Code and the Rules of Procedure of the State Bar govern in any investigation or proceeding conducted by the State Bar under this rule.

(Subd (f) amended effective October 1, 2025; previously relettered as subd (d) effective September 3, 1986; previously amended and relettered effective January 1, 2007; previously amended effective January 1, 2019, and July 24, 2024.)

(g) Representation in cases governed by the Indian Child Welfare Act (25 U.S.C. § 1903 et seq.)

- (1) The requirement in (a) that the applicant associate with an active licensee of the State Bar does not apply to an applicant seeking to appear in a California court to represent an Indian tribe in a child custody proceeding governed by the Indian Child Welfare Act; and
- (2) An applicant seeking to appear in a California court to represent an Indian tribe in a child custody proceeding governed by the Indian Child Welfare Act constitutes a special circumstance for the purposes of the restriction in (b) that an application may be denied because of repeated appearances.

(Subd (g) amended effective October 1, 2025; adopted effective January 1, 2019.)

(h) Supreme Court and Court of Appeal not precluded from permitting argument in a particular case

This rule does not preclude the Supreme Court or a Court of Appeal from permitting argument in a particular case from a person who is not a licensee of the State Bar, but who is licensed to practice in another jurisdiction and who possesses special expertise in the particular field affected by the proceeding.

(Subd (h) amended effective October 1, 2025; previously relettered as subd (e) effective September 3, 1986; previously amended and relettered as subd (g) effective

January 1, 2007; previously amended and relettered as subd (h) effective January 1, 2007; previously amended effective July 24, 2024.)

(i) Inherent Power of Supreme Court

Nothing in this rule may be construed as affecting the power of the Supreme Court to exercise its inherent jurisdiction over the practice of law in California.

(Subd (i) adopted effective July 24, 2024.)

Rule 9.40 amended effective October 1, 2025; adopted as rule 983 by the Supreme Court effective September 13, 1972; previously amended and renumbered effective January 1, 2007; previously amended effective October 3, 1973, September 3, 1986, January 17, 1991, March 15, 1991, January 1, 2019, and July 24, 2024.

Rule 9.41. Appearances by military counsel

(a) Permission to appear

A judge advocate (as that term is defined at 10 U.S.C. §801(13)) who is not a licensee of the State Bar but who is an attorney in good standing of and eligible to practice before the bar of any United States court or of the highest court in any state, territory, or insular possession of the United States may, in the discretion of a court of this state, be permitted to appear in that court to represent a person in the military service in a particular cause pending before that court, under the Servicemembers Civil Relief Act, 50 United States Code Appendix section 501 et seq., if:

- (1) The judge advocate has been made available by the cognizant Judge Advocate General (as that term is defined at 10 United States Code section 801(1)) or a duly designated representative; and
- (2) The court finds that retaining civilian counsel likely would cause substantial hardship for the person in military service or that person's family; and
- (3) The court appoints a judge advocate as attorney to represent the person in military service under the Servicemembers Civil Relief Act.

Under no circumstances is the determination of availability of a judge advocate to be made by any court within this state, or reviewed by any court of this state. In determining the likelihood of substantial hardship as a result of the retention of civilian counsel, the court may take judicial notice of the prevailing pay scales for persons in the military service.

(Subd (a) amended effective October 1, 2025; previously amended effective January 1, 2007, and January 1, 2019.)

(b) Notice to parties

The clerk of the court considering appointment of a judge advocate under this rule must provide written notice of that fact to all parties who have appeared in the cause. A copy of the notice, together with proof of service by mail in accordance with Code of Civil Procedure section 1013a, must be filed by the clerk of the court. Any party who has appeared in the matter may file a written objection to the appointment within 10 days of the date on which notice was given unless the court has prescribed a shorter period. If the court determines to hold a hearing in relation to the appointment, notice of the hearing must be given at least 10 days before the date designated for the hearing unless the court has prescribed a shorter period.

(Subd (b) amended effective January 1, 2007.)

(c) Appearing judge advocate subject to court and State Bar jurisdiction

A judge advocate permitted to appear under this rule is subject to the jurisdiction of the courts of this state with respect to the law of this state governing the conduct of attorneys to the same extent as licensee of the State Bar. The judge advocate must become familiar with and comply with the standards of professional conduct required of licensees of the State Bar and is subject to the disciplinary jurisdiction of the State Bar. Division 3, chapter 4, article 5 of the Business and Professions Code and the Rules of Procedure of the State Bar govern any investigation or proceeding conducted by the State Bar under this rule.

(Subd (c) amended effective October 1, 2025; previously amended effective January 1, 2007, and January 1, 2019.)

(d) Appearing judge advocate subject to rights and obligations of State Bar licensees concerning professional privileges

A judge advocate permitted to appear under this rule is subject to the rights and obligations with respect to attorney-client privilege, work-product privilege, and other professional privileges to the same extent as a licensee of the State Bar.

(Subd (d) amended effective October 1, 2025; previously amended effective January 1, 2007, and January 1, 2019.)

Rule 9.41 amended effective October 1, 2025; adopted as rule 983.1 by the Supreme Court effective February 19, 1992; adopted by the Judicial Council effective February 21, 1992; amended and renumbered effective January 1, 2007; previously amended effective January 1, 2019.

Rule 9.41.1. Registered servicemember attorney and registered servicemember spouse attorney

(a) Definitions

- (1) A “servicemember” means a member of the United States uniformed services, as that term is defined by 10 U.S.C. § 101(a)(5), who has relocated residence to California due to military orders for military service that required relocation of residence to California.
- (2) A “servicemember spouse” means a person who is married to, in a civil union with, or a registered domestic partner of, a servicemember, and has relocated residence to California due to the servicemember’s military orders.
- (3) A “license” means any license, certificate, or other evidence of qualification that an individual is required to obtain before the individual may engage in the practice of law in, or represent himself or herself to be a member of the attorney bar of, one or more states other than California.
- (4) A “state” is a state, commonwealth, territory, or possession of the United States, or the District of Columbia.
- (5) A “covered licensee” means the holder of a license in one or more states who:
 - (A) Is in good standing with the licensing authority of each state in which the holder has a license;
 - (B) Has not had discipline imposed or been disbarred in any state;
 - (C) Is not subject to a disciplinary investigation in any state; and
 - (D) Has not resigned with charges pending in any state.
- (6) “Registered servicemember attorney” and “registered servicemember spouse attorney” mean an attorney who has met the requirements in (c) of this rule and is registered with the State Bar pursuant to (e) of this rule.

(Subd (a) amended effective November 5, 2025.)

(b) Scope of Practice

Subject to all rules, regulations, statutes, and requirements applicable to attorneys who receive a license, an attorney registered pursuant to (e) of this rule or issued a temporary license pursuant to (f) of this rule is permitted to practice law in California in all forms of legal practice that are permissible for a licensed attorney of the State Bar, including pro bono legal services.

(Subd (b) amended effective November 5, 2025.)

(c) Requirements

For an attorney to practice law under this rule, the attorney must:

- (1) Be a covered licensee;
- (2) Be a servicemember or a servicemember spouse;
- (3) Submit an application that includes:
 - (A) Proof of military orders for military service that required relocation of residence to California;
 - (B) Proof of marriage, civil union, or registered domestic partnership status with the servicemember, if the applicant is a servicemember spouse; and
 - (C) An affidavit that affirms, under the penalty of perjury, that:
 - (i) the applicant is the person described and identified in the application
 - (ii) the applicant has read and understands the requirements to be admitted as and to remain an active licensee of the State Bar, including the requirement to be subject to the disciplinary authority of the Supreme Court and the State Bar;
 - (iii) the applicant certifies that the applicant shall comply with the requirements to remain an active licensee of the State Bar, including the requirement to be subject to the disciplinary authority of the Supreme Court and the State Bar during the time the applicant practices law as a registered servicemember attorney or registered servicemember spouse attorney or with a temporary license pursuant to (f) of this rule;
 - (iv) the applicant is in good standing in all states in which the applicant holds a license and has not been disbarred or resigned with charges pending in any other state; and
 - (v) all statements made in the application are true and correct and complete.

(Subd (c) amended effective November 5, 2025.)

(d) Background Check

The State Bar shall, before registering an applicant as a registered servicemember attorney or registered servicemember spouse attorney pursuant to (e) of this rule, conduct a background check to verify the applicant's eligibility pursuant to (c) of this rule.

(Subd (d) adopted effective November 5, 2025.)

(e) Registration as registered servicemember attorney or registered servicemember spouse attorney

If the State Bar determines that a servicemember or servicemember spouse meets the requirements of (c) of this rule, including after performing a background check pursuant to (d) of this rule, the servicemember or servicemember spouse shall be registered by the State Bar as a registered servicemember attorney or registered servicemember spouse attorney, respectively.

A servicemember spouse who is registered with the State Bar registered military spouse attorney program on November 5, 2025 shall be automatically registered with the State Bar as a registered servicemember spouse attorney.

Registered servicemember attorneys and registered servicemember spouse attorneys must abide by all of the laws and rules that govern licensees of the State Bar of California. The State Bar must develop procedures for granting waivers of the processing costs of running California Department of Justice and Federal Bureau of Investigation background checks, if required, for applicants applying under (c) of this rule and licensees with demonstrable financial hardship.

Registered servicemember attorneys and registered servicemember spouse attorneys are subject to the disciplinary authority of the Supreme Court and the State Bar.

(Subd (e) adopted effective November 5, 2025.)

(f) Temporary Licensure

If the State Bar cannot register the applicant pursuant to (e) of this rule within thirty (30) days of receipt of a complete application pursuant to (c)(3) of this rule, the State Bar shall issue a temporary license to the applicant to be valid for ninety (90) days, and the temporary license's validity shall be extended for subsequent periods of ninety (90) days until the State Bar registers the applicant pursuant to (e) of this rule. Notwithstanding the foregoing, if the State Bar determines at any time that the applicant is not eligible for registration pursuant to (c) of this rule, any temporary license shall no longer be valid, the applicant shall not be registered pursuant to (e) of this rule, and the applicant shall be notified of this determination.

(Subd (f) adopted effective November 5, 2025.)

(g) State Bar registered servicemember attorney and registered servicemember spouse attorney program

The State Bar may establish and administer a program for registering registered servicemember attorneys and registered servicemember spouse attorneys under rules adopted by the Board of Trustees of the State Bar.

(Subd (g) adopted effective November 5, 2025.)

(h) Termination of servicemember or servicemember spouse attorney registration

Registration as a registered servicemember attorney or servicemember spouse attorney is terminated:

- (1) if the attorney is no longer a covered licensee;
- (2) if the registered servicemember attorney is no longer a member of the United States uniformed services, as that term is defined by 10 U.S.C. § 101(a)(5);
- (3) for registered servicemember attorneys, if the registered servicemember attorney is transferred outside of California or is otherwise no longer under military orders to be located in California;
- (4) for registered servicemember spouse attorneys, 90 days after the servicemember is transferred outside of California or is otherwise no longer under military orders to be located in California, except that if the servicemember has been assigned to an unaccompanied or remote assignment with no dependents authorized, registration is terminated 90 days after the servicemember is transferred to a location outside of California with dependents authorized;
- (5) for registered servicemember spouse attorneys, 90 days after the date of termination of the registered servicemember spouse attorney's marriage, civil union, or registered domestic partnership with the servicemember, or one year after the date of death of the servicemember; or
- (6) if their registration is terminated through the same process and on the same grounds applicable to State Bar licensees in disbarment proceedings; registered servicemember attorneys and registered servicemember spouse attorneys are subject to non-disbarment discipline as well as non-disciplinary suspensions or inactive enrollments, such as for nonpayment of fees, pursuant to the same procedures and on the same grounds as licensees of the State Bar.

(Subd (h) relettered and amended effective November 5, 2025; adopted as Subd (i).)

(i) Inherent Power of Supreme Court

Nothing in this rule may be construed as affecting the power of the Supreme Court to exercise its inherent jurisdiction over the practice of law in California.

(Subd (i) adopted effective November 5, 2025.)

(j) Effect of Rule on Multijurisdictional Practice

Nothing in this rule limits the scope of activities permissible under existing law by attorneys who are not licensees of the State Bar.

(Subd (j) relettered and amended effective November 5, 2025; adopted as Subd (K).)

Rule 9.41.1 amended effective November 5, 2025; adopted by the Supreme Court effective March 1, 2019.

Rule 9.42. Certified law students

(a) Definitions

- (1) A “certified law student” is a law student who has a currently effective certificate of registration as a certified law student from the State Bar.
- (2) A “supervising attorney” is a licensee of the State Bar who agrees to supervise a certified law student under rules established by the State Bar and whose name appears on the application for certification.

(Subd (a) amended effective January 1, 2019; previously amended effective January 1, 2007.)

(b) State Bar certified law student program

The State Bar must establish and administer a program for registering law students under rules adopted by the Board of Trustees of the State Bar.

(Subd (b) amended effective January 1, 2019; previously amended effective January 1, 2007.)

(c) Eligibility for certification

To be eligible to become a certified law student, an applicant must:

- (1) Have successfully completed one full year of studies (minimum of 270 hours) at a law school accredited by the American Bar Association or the State Bar

of California, or both, or have passed the first year law students' examination;

- (2) Have been accepted into, and be enrolled in, the second, third, or fourth year of law school in good academic standing or have graduated from law school, subject to the time period limitations specified in the rules adopted by the Board of Trustees of the State Bar; and
- (3) Have either successfully completed or be currently enrolled in and attending academic courses in evidence and civil procedure.

(Subd (c) amended effective January 1, 2019.)

(d) Permitted activities

Subject to all applicable rules, regulations, and statutes, a certified law student may:

- (1) Negotiate for and on behalf of the client subject to final approval thereof by the supervising attorney or give legal advice to the client, provided that the certified law student:
 - (A) Obtains the approval of the supervising attorney to engage in the activities;
 - (B) Obtains the approval of the supervising attorney regarding the legal advice to be given or plan of negotiation to be undertaken by the certified law student; and
 - (C) Performs the activities under the general supervision of the supervising attorney;
- (2) Appear on behalf of the client in depositions, provided that the certified law student:
 - (A) Obtains the approval of the supervising attorney to engage in the activity;
 - (B) Performs the activity under the direct and immediate supervision and in the personal presence of the supervising attorney (or, exclusively in the case of government agencies, any deputy, assistant, or other staff attorney authorized and designated by the supervising attorney); and
 - (C) Obtains a signed consent form from the client on whose behalf the certified law student acts (or, exclusively in the case of government agencies, from the chief counsel or prosecuting attorney) approving the performance of such acts by such certified law student or generally by any certified law student;

- (3) Appear on behalf of the client in any public trial, hearing, arbitration, or proceeding, or before any arbitrator, court, public agency, referee, magistrate, commissioner, or hearing officer, to the extent approved by such arbitrator, court, public agency, referee, magistrate, commissioner, or hearing officer, provided that the certified law student:
 - (A) Obtains the approval of the supervising attorney to engage in the activity;
 - (B) Performs the activity under the direct and immediate supervision and in the personal presence of the supervising attorney (or, exclusively in the case of government agencies, any deputy, assistant, or other staff attorney authorized and designated by the supervising attorney);
 - (C) Obtains a signed consent form from the client on whose behalf the certified law student acts (or, exclusively in the case of government agencies, from the chief counsel or prosecuting attorney) approving the performance of such acts by such certified law student or generally by any certified law student; and
 - (D) As a condition to such appearance, either presents a copy of the consent form to the arbitrator, court, public agency, referee, magistrate, commissioner, or hearing officer, or files a copy of the consent form in the court case file; and
- (4) Appear on behalf of a government agency in the prosecution of criminal actions classified as infractions or other such minor criminal offenses with a maximum penalty or a fine equal to the maximum fine for infractions in California, including any public trial:
 - (A) Subject to approval by the court, commissioner, referee, hearing officer, or magistrate presiding at such public trial; and
 - (B) Without the personal appearance of the supervising attorney or any deputy, assistant, or other staff attorney authorized and designated by the supervising attorney, but only if the supervising attorney or the designated attorney has approved in writing the performance of such acts by the certified law student and is immediately available to attend the proceeding.

(Subd (d) amended effective January 1, 2007.)

(e) Failure to comply with program

A certified law student who fails to comply with the requirements of the State Bar certified law student program must have his or her certification withdrawn under rules adopted by the Board of Trustees of the State Bar.

(Subd (e) amended effective January 1, 2019; previously amended effective January 1, 2007.)

(f) Fee and penalty

The State Bar has the authority to set and collect appropriate fees and penalties for this program.

(Subd (f) amended effective January 1, 2007.)

(g) Inherent power of Supreme Court

Nothing in these rules may be construed as affecting the power of the Supreme Court to exercise its inherent jurisdiction over the practice of law in California.

(Subd (g) amended effective January 1, 2007.)

Rule 9.42 amended effective January 1, 2019; adopted as rule 983.2 by the Supreme Court effective December 29, 1993; previously amended and renumbered effective January 1, 2007.

Rule 9.43. Out-of-state attorney arbitration counsel

(a) Definition

An “out-of-state attorney arbitration counsel” is an attorney who is:

- (1) Not a licensee of the State Bar but who is an attorney in good standing of and eligible to practice before the bar of any United States court or the highest court in any state, territory, or insular possession of the United States, and who has been retained to appear in the course of, or in connection with, an arbitration proceeding in this state;
- (2) Has served a certificate in accordance with the requirements of Code of Civil Procedure section 1282.4 on the arbitrator, the arbitrators, or the arbitral forum, the State Bar, and all other parties and counsel in the arbitration whose addresses are known to the attorney; and
- (3) Whose appearance has been approved by the arbitrator, the arbitrators, or the arbitral forum.

(Subd (a) amended effective October 1, 2025; previously amended effective January 1, 2007, and January 1, 2019.)

(b) State Bar out-of-state attorney arbitration counsel program

The State Bar must establish and administer a program to implement the State Bar's responsibilities under Code of Civil Procedure section 1282.4. The State Bar's program may be operative only as long as the applicable provisions of Code of Civil Procedure section 1282.4 remain in effect.

(Subd (b) amended effective October 1, 2025; previously amended effective January 1, 2007.)

(c) Eligibility to appear as an out-of-state attorney arbitration counsel

To be eligible to appear as an out-of-state attorney arbitration counsel, an attorney must comply with all of the applicable provisions of Code of Civil Procedure section 1282.4 and the requirements of this rule and the related rules and regulations adopted by the State Bar.

(Subd (c) amended effective October 1, 2025; previously amended effective January 1, 2007.)

(d) Discipline

An out-of-state attorney arbitration counsel who files a certificate containing false information or who otherwise fails to comply with the standards of professional conduct required of licensees of the State Bar is subject to the disciplinary jurisdiction of the State Bar with respect to any of his or her acts occurring in the course of the arbitration.

(Subd (d) amended October 1, 2025; previously amended effective January 1, 2007; January 1, 2019, July 24, 2024.)

(e) Disqualification

Failure to timely file and serve a certificate or, absent special circumstances, appearances in multiple separate arbitration matters are grounds for disqualification from serving in the arbitration in which the certificate was filed.

(Subd (e) amended effective January 1, 2007.)

(f) Fee

The State Bar may set an appropriate application fee to be paid by the out-of-state attorney arbitration counsel.

(Subd (f) amended effective October 1, 2025; previously amended effective January 1, 2007, and July 24, 2024.)

(g) Inherent power of Supreme Court

Nothing in this rule may be construed as affecting the power of the Supreme Court to exercise its inherent jurisdiction over the practice of law in California.

(Subd (g) amended effective July 24, 2024; previously amended effective January 1, 2007.)

Rule 9.43 amended effective October 1, 2025; adopted as rule 983.4 by the Supreme Court effective July 1, 1999; previously amended and renumbered effective January 1, 2007; previously amended effective January 1, 2019, and July 24, 2024.

Rule 9.44. Registered foreign legal consultant

(a) Definition

A “registered foreign legal consultant” is a person who:

- (1) Is admitted to practice and is in good standing as an attorney or counselor-at-law or the equivalent in a foreign country; and
- (2) Has a currently effective certificate of registration as a registered foreign legal consultant from the State Bar.

(Subd (a) amended effective January 1, 2007.)

(b) State Bar registered foreign legal consultant program

The State Bar must establish and administer a program for registering foreign attorneys or counselors-at-law or the equivalent under rules adopted by the Board of Trustees of the State Bar.

(Subd (b) amended effective January 1, 2019; previously amended effective January 1, 2007.)

(c) Eligibility for certification

To be eligible to become a registered foreign legal consultant, an applicant must:

- (1) Present satisfactory proof that the applicant has been admitted to practice and has been in good standing as an attorney or counselor-at-law or the equivalent in a foreign country for at least four of the six years immediately preceding the application and, while so admitted, has actually practiced the law of that country;
- (2) Present satisfactory proof that the applicant possesses the good moral character requisite for a person to be licensed as a licensee of the State Bar

and proof of compliance with California Rules of Court, rule 9.9.5, governing attorney fingerprinting;

- (3) Agree to comply with the provisions of the rules adopted by the Board of Trustees of the State Bar relating to security for claims against a foreign legal consultant by his or her clients;
- (4) Agree to comply with the provisions of the rules adopted by the Board of Trustees of the State Bar relating to maintaining an address of record for State Bar purposes;
- (5) Agree to notify the State Bar of any change in his or her status in any jurisdiction where he or she is admitted to practice or of any discipline with respect to such admission;
- (6) Agree to be subject to the jurisdiction of the courts of this state with respect to the laws of the State of California governing the conduct of attorneys, to the same extent as a licensee of the State Bar;
- (7) Agree to become familiar with and comply with the standards of professional conduct required of licensees of the State Bar;
- (8) Agree to be subject to the disciplinary jurisdiction of the State Bar;
- (9) Agree to be subject to the rights and obligations with respect to attorney client privilege, work-product privilege, and other professional privileges, to the same extent as attorneys admitted to practice law in California; and
- (10) Agree to comply with the laws of the State of California, the rules and regulations of the State Bar, and these rules.

(Subd (c) amended effective October 1, 2025; previously amended effective January 1, 2007, and January 1, 2019.)

(d) Authority to practice law

Subject to all applicable rules, regulations, and statutes, a registered foreign legal consultant may render legal services in California, except that he or she may not:

- (1) Appear for a person other than himself or herself as attorney in any court, or before any magistrate or other judicial officer, in this state or prepare pleadings or any other papers or issue subpoenas in any action or proceeding brought in any court or before any judicial officer;
- (2) Prepare any deed, mortgage, assignment, discharge, lease, or any other instrument affecting title to real estate located in the United States;

- (3) Prepare any will or trust instrument affecting the disposition on death of any property located in the United States and owned by a resident or any instrument relating to the administration of a decedent's estate in the United States;
- (4) Prepare any instrument in respect of the marital relations, rights, or duties of a resident of the United States, or the custody or care of the children of a resident; or
- (5) Otherwise render professional legal advice on the law of the State of California, any other state of the United States, the District of Columbia, the United States, or of any jurisdiction other than the jurisdiction named in satisfying the requirements of (c) of this rule, whether rendered incident to preparation of legal instruments or otherwise.

(Subd (d) amended effective January 1, 2007.)

(e) Failure to comply with program

A registered foreign legal consultant who fails to comply with the requirements of the State Bar Registered Foreign Legal Consultant Program will have her or his certification suspended or revoked under rules adopted by the Board of Trustees of the State Bar.

(Subd (e) amended effective January 1, 2019; previously amended effective January 1, 2007.)

(f) Fee and penalty

The State Bar has the authority to set and collect appropriate fees and penalties for this program.

(Subd (f) amended effective January 1, 2007.)

(g) Inherent power of Supreme Court

Nothing in these rules may be construed as affecting the power of the Supreme Court to exercise its inherent jurisdiction over the practice of law in California.

(Subd (g) amended effective January 1, 2007.)

Rule 9.44 amended effective October 1, 2025; adopted as rule 988 effective December 1, 1993; previously amended and renumbered effective January 1, 2007; previously amended effective January 1, 2019.

Rule 9.45. Registered legal aid attorneys

(a) Definitions

The following definitions apply in this rule:

- (1) “Eligible legal aid organization” means any of the following:
 - (A) A nonprofit entity in good standing in California and in the state in which it is incorporated, if other than California, that provides legal aid in civil matters, including family law and immigration law, to indigent and disenfranchised persons, especially underserved client groups, such as the elderly, persons with disabilities, people of color, juveniles, and persons with limited English proficiency; or
 - (B) A nonprofit law school approved by the American Bar Association located in California or accredited by the State Bar that provides legal aid as described above in subdivision (A); or
 - (C) An entity that receives IOLTA funds pursuant to Business and Professions Code, section 6210, et seq
- (2) “Active licensee in good standing of the bar of a United States state, jurisdiction, possession, territory, or dependency” means an attorney who:
 - (A) Is a licensee in good standing of the entity governing the practice of law in each jurisdiction in which the attorney is licensed to practice law, who has not been disbarred, has not resigned with charges pending, or is not suspended from practicing law for disciplinary misconduct in any other jurisdiction; and
 - (B) Remains an active licensee in good standing of the entity governing the practice of law in at least one United States state, jurisdiction, possession, territory, or dependency other than California while practicing law as a registered legal aid attorney in California.

(Subd (a) amended effective October 1, 2025; adopted as subd (j) effective November 15, 2004; previously relettered effective January 1, 2007; previously amended effective January 1, 2019, and March 1, 2019.)

(b) Scope of practice

Subject to all applicable rules, regulations, and statutes, an attorney practicing law under this rule may practice law in California only while working, with or without pay, at an eligible legal aid organization, as defined in this rule, and, at that institution and only on behalf of its clients or customers, may engage, under supervision, in all forms of legal practice that are permissible for a licensee of the State Bar.

(Subd (b) amended effective October 1, 2025; adopted as subd (a) effective November 15, 2004; previously amended and relettered effective January 1, 2007; previously amended effective January 1, 2019, and March 1, 2019.)

(c) Requirements

For an attorney to qualify to practice law under this rule, the attorney must:

- (1) Be an active licensee in good standing of the bar of a United States state, jurisdiction, possession, territory, or dependency;
- (2) Meet all of the requirements for admission to the State Bar, except that the attorney:
 - (A) Need not take the California bar examination or the Multistate Professional Responsibility Examination; and
 - (B) May practice law while awaiting the result of his or her Application for Determination of Moral Character;
- (3) Comply with the rules adopted by the Board of Trustees relating to the State Bar Registered Legal Aid Attorney Program;
- (4) Practice law under the supervision of an attorney who is employed by the eligible legal aid organization and who is a licensee in good standing of the State Bar.
- (5) Abide by all of the laws and rules that govern licensees of the State Bar, including the Minimum Continuing Legal Education (MCLE) requirements;
- (6) Satisfy in his or her first year of practice under this rule all of the MCLE requirements, including ethics education, that licensees of the State Bar must complete every three years and, thereafter, satisfy the MCLE requirements for the registered legal aid attorney's compliance group as set forth in State Bar Rules 2.70 and 2.71. If the registered legal aid attorney's compliance group is required to report in less than thirty-six months, the MCLE requirements will be reduced proportionally; and
- (7) Not have taken and failed the California bar examination within five years immediately preceding initial application to register under this rule.

(Subd (c) amended effective October 1, 2025; adopted as subd (b) effective November 15, 2004; previously relettered effective January 1, 2007; previously amended effective January 1, 2019; previously amended and renumbered effective March 1, 2019.)

(d) Application

The attorney must comply with the following registration requirements:

- (1) Register as a legal aid attorney; submit a separate application for each eligible legal aid organization; file an Application for Determination of Moral Character with the State Bar; and comply with Rules of Court, rule 9.9.5, governing attorney fingerprinting;
- (2) Submit to the State Bar a declaration signed by the attorney agreeing that he or she will be subject to the disciplinary authority of the Supreme Court of California and the State Bar and attesting that he or she will not practice law in California other than under supervision of an attorney at an eligible legal aid organization a during the time he or she practices law as a registered legal aid attorney in California; and
- (3) Submit to the State Bar a declaration signed by a qualifying supervisor on behalf of the from each eligible legal aid organization in California. The declaration must attesting:
 - (i) that the applicant will work, with or without pay, as an attorney for the organization;
 - (ii) that the applicant will be supervised as specified in this rule;
 - (iii) that the eligible legal aid organization and the supervising attorney assume professional responsibility for any work performed by the applicant under this rule;
 - (iv) that the organization will notify the State Bar within 30 days of the cessation of the applicant's employment with that employer in California; and
 - (v) that the person signing the declaration believes, to the best of his or her knowledge after reasonable inquiry, that the applicant qualifies for registration under this rule and is an individual of good moral character.

(Subd (d) amended effective October 1, 2025; adopted as subd (c) effective November 15, 2004; previously relettered effective January 1, 2007; previously amended effective March 1, 2019.)

(e) Duration of practice

A registered legal aid attorney must renew his or her registration annually and may practice for no more than a total of five years under this rule.

(Subd (e) amended effective March 1, 2019; adopted as subd (d) effective November 15, 2004; previously relettered effective January 1, 2007.)

(f) Application and registration fees

The State Bar may set appropriate application fees and initial and annual registration fees to be paid by registered legal aid attorneys.

(Subd (f) amended effective October 1, 2025; adopted as subd (e) effective November 15, 2004; previously amended and relettered effective January 1, 2007; previously amended effective March 1, 2019.)

(g) State Bar Registered Legal Aid Attorney Program

The State Bar may establish and administer a program for registering California legal aid attorneys under rules adopted by the Board of Trustees of the State Bar.

(Subd (g) amended effective March 1, 2019; adopted as subd (f) effective November 15, 2004; previously relettered effective January 1, 2007; previously amended effective January 1, 2019.)

(h) Supervision

To meet the requirements of this rule, an attorney supervising a registered legal aid attorney:

- (1) Must have practiced law as a full-time occupation for at least four years in any United States jurisdiction;
- (2) Must have actively practiced law in California for at least two years immediately preceding the time of supervision and be a licensee in good standing of the State Bar;
- (3) Must assume professional responsibility for any work that the registered legal aid attorney performs under the supervising attorney's supervision;
- (4) Must assist, counsel, and provide direct supervision of the registered legal aid attorney in the activities authorized by this rule, approve in writing any appearance in court, deposition, arbitration or any proceeding by the registered legal aid attorney, and review such activities with the supervised registered legal aid attorney, to the extent required for the protection of the client or customer;
- (5) Must read, approve, and personally sign any pleadings, briefs, or other similar documents prepared by the registered legal aid attorney before their

filing, and must read and approve any documents prepared by the registered legal aid attorney before their submission for execution; and

- (6) May, in his or her absence, designate another attorney meeting the requirements of (1) through (5) to provide the supervision required under this rule.

(Subd (h) amended effective October 1, 2025; adopted as subd (g) effective November 15, 2004; previously relettered effective January 1, 2007; previously amended effective January 1, 2019; previously amended and renumbered effective March 1, 2019.)

(i) Inherent power of Supreme Court

Nothing in this rule may be construed as affecting the power of the Supreme Court of California to exercise its inherent jurisdiction over the practice of law in California.

(Subd (i) amended and relettered effective January 1, 2007; adopted as subd (h) effective November 15, 2004.)

(j) Effect of rule on multijurisdictional practice

Nothing in this rule limits the scope of activities permissible under existing law by attorneys who are not licensees of the State Bar.

(Subd (j) amended effective October 1, 2025; adopted as subd (i) effective November 15, 2004; previously relettered effective January 1, 2007; previously amended effective January 1, 2019.)

Rule 9.45 amended effective October 1, 2025; adopted as rule 964 by the Supreme Court effective November 15, 2004; previously amended and renumbered effective January 1, 2007; previously amended effective January 1, 2019, and March 1, 2019.

Rule 9.46. Registered in-house counsel

(a) Definitions

The following definitions apply to terms used in this rule:

- (1) “Qualifying institution” means a corporation, a partnership, an association, or other legal entity, including its subsidiaries and organizational affiliates, which has an office located in California. Neither a governmental entity nor an entity that provides legal services to others can be a qualifying institution for purposes of this rule. A qualifying institution must:

- (A) Employ at least 5 full time employees; or

- (B) Employ in California an attorney who is an active licensee in good standing of the State Bar.
- (2) “Active licensee in good standing of the bar of a United States state, jurisdiction, possession, territory, or dependency” means an attorney who:
 - (A) Is a licensee in good standing of the entity governing the practice of law in each jurisdiction in which the attorney is licensed to practice law, who has not been disbarred, has not resigned with charges pending, or is not suspended from practicing law for disciplinary misconduct in any other jurisdiction; and
 - (B) Remains an active licensee in good standing of the entity governing the practice of law in at least one United States state, jurisdiction, possession, territory, or dependency, other than California, while practicing law as registered in-house counsel in California.

(Subd (a) amended effective October 25, 2025; adopted as subd (j) effective November 15, 2004; previously relettered effective January 1, 2007; previously amended effective January 1, 2019, and March 1, 2019.)

(b) Scope of practice

Subject to all applicable rules, regulations, and statutes, an attorney practicing law under this rule is:

- (1) Permitted to provide legal services in California only to the qualifying institution that employs him or her;
- (2) Permitted to provide *pro bono* legal services under supervision of a California attorney for either eligible legal aid organizations as defined by Rules of Court, rule 9.45(a)(1), or the qualifying institution that employs him or her;
- (3) Not permitted to make court appearances in California state courts or to engage in any other activities for which pro hac vice admission is required if they are performed in California by an attorney who is not a licensee of the State Bar; and
- (4) Not permitted to provide personal or individual representation to any customers, shareholders, owners, partners, officers, employees, servants, or agents of the qualifying institution, except as described in subdivision (b)(2).

(Subd (b) amended effective October 1, 2025; adopted as subd (a) effective November 15, 2004; previously amended and relettered effective January 1, 2007; previously amended effective January 1, 2019, and March 1, 2019.)

(c) Requirements

For an attorney to practice law under this rule, the attorney must:

- (1) Be an active licensee in good standing of the bar of a United States state, jurisdiction, possession, territory, or dependency;
- (2) Meet all of the requirements for admission to the State Bar, except that the attorney:
 - (A) Need not take the California bar examination or the Multistate Professional Responsibility Examination; and
 - (B) May practice law while awaiting the result of his or her Application for Determination of Moral Character;
- (3) Comply with the rules adopted by the Board of Trustees relating to the State Bar Registered In-House Counsel Program;
- (4) Practice law exclusively for a single qualifying institution, except that, while practicing under this rule, the attorney may provide pro bono services through eligible legal aid organizations;
- (5) Abide by all of the laws and rules that govern licensees of the State Bar, including the Minimum Continuing Legal Education (MCLE) requirements;
- (6) Satisfy in his or her first year of practice under this rule all of the MCLE requirements, including ethics education, that licensees of the State Bar must complete every three years and, thereafter, satisfy the MCLE requirements for the registered in-house counsel's compliance group as set forth in State Bar Rules 2.70 and 2.71. If the registered in-house counsel's compliance group is required to report in less than thirty-six months, the MCLE requirement will be reduced proportionally; and
- (7) Reside in California.

(Subd (c) amended effective October 1, 2025; adopted as subd (b) effective November 15, 2004; previously relettered effective January 1, 2007; previously amended effective January 1, 2019, and March 1, 2019.)

(d) Application

The attorney must comply with the following registration requirements:

- (1) Register as an in-house counsel; submit an application for the qualifying institution; file an Application for Determination of Moral Character with the

State Bar; and comply with Rules of Court, rule 9.9.5. governing attorney fingerprinting;

- (2) Submit a supplemental form identifying the eligible legal aid organizations as defined by Rules of Court, rule 9.45(a)(1) and the supervising attorney, through which an in-house counsel intends to provide *pro bono* services, if applicable;
- (3) Submit to the State Bar a declaration signed by the attorney agreeing that he or she will be subject to the disciplinary authority of the Supreme Court and the State Bar and attesting that he or she will not practice law in California other than on behalf of the qualifying institution during the time he or she is registered in-house counsel in California, except if supervised, a registered in-house counsel may provide *pro bono* services through eligible legal aid organization; and
- (4) Submit to the State Bar a declaration signed by an officer, a director, or a general counsel of the applicant's employer, on behalf of the applicant's employer. The declaration must attest:
 - (i) that the applicant is employed as an attorney for the employer;
 - (ii) that the nature of the employment conforms to the requirements of this rule;
 - (iii) that the employer will notify the State Bar within 30 days of the cessation of the applicant's employment in California; and
 - (iv) that the person signing the declaration believes, to the best of his or her knowledge after reasonable inquiry, that the applicant qualifies for registration under this rule and is an individual of good moral character.

(Subd (d) amended effective October 1, 2025; adopted as subd (c) effective November 15, 2004; previously relettered effective January 1, 2007; previously amended effective March 1, 2019.)

(e) Duration of practice

A registered in-house counsel must renew his or her registration annually. There is no limitation on the number of years in-house counsel may register under this rule. Registered in-house counsel may practice law under this rule only for as long as he or she remains employed by the same qualifying institution that provided the declaration in support of his or her application. If an attorney practicing law as registered in-house counsel leaves the employment of his or her employer or changes employers, he or she must notify the State Bar within 30 days. If an attorney wishes to practice law under this rule for a new employer, he or she must first register as in-house counsel for that employer.

(Subd (e); amended effective October 1, 2025; adopted as subd (d) effective November 15, 2004; previously amended and relettered effective January 1, 2007.)

(f) Application and registration fees

The State Bar may set appropriate application fees and initial and annual registration fees to be paid by registered in-house counsel.

(Subd (f) amended effective October 1, 2025; adopted as subd (f) effective November 15, 2004; previously amended and relettered as subd (g) effective January 1, 2007; previously relettered effective March 1, 2019.)

(g) State Bar Registered In-House Counsel Program

The State Bar must establish and administer a program for registering California in-house counsel under rules adopted by the Board of Trustees.

(Subd (g) relettered effective March 1, 2019; adopted as subd (g) effective November 15, 2004; previously amended and relettered as subd (h) effective January 1, 2007; previously amended effective January 1, 2019.)

(h) Inherent power of Supreme Court

Nothing in this rule may be construed as affecting the power of the Supreme Court to exercise its inherent jurisdiction over the practice of law in California.

(Subd (h) amended effective October 1, 2025; adopted as subd (h) effective November 15, 2004; previously amended and relettered as subd (i) effective January 1, 2007; previously relettered effective March 1, 2019.)

(i) Effect of rule on multijurisdictional practice

Nothing in this rule limits the scope of activities permissible under existing law by attorneys who are not licensees of the State Bar.

(Subd (i) amended effective October 1, 2025; adopted as subd (i) effective November 15, 2004; previously relettered as subd (j) effective January 1, 2007, and March 1, 2019; previously amended effective January 1, 2019.)

Rule 9.46 amended effective October 1, 2025; adopted as rule 965 by the Supreme Court effective November 15, 2004; previously amended and renumbered effective January 1, 2007; previously amended effective January 1, 2019, and March 1, 2019.

Rule 9.47. Attorneys practicing law temporarily in California as part of litigation

(a) Definitions

The following definitions apply to the terms used in this rule:

- (1) “A formal legal proceeding” means litigation, arbitration, mediation, or a legal action before an administrative decision-maker.
- (2) “Authorized to appear” means the attorney is permitted to appear in the proceeding by the rules of the jurisdiction in which the formal legal proceeding is taking place or will be taking place.
- (3) “Active attorney in good standing of the bar of a United States state, jurisdiction, possession, territory, or dependency” means an attorney who meets all of the following criteria:
 - (A) Is a licensee in good standing of the entity governing the practice of law in each jurisdiction in which the attorney is licensed to practice law who has not been disbarred, has not resigned with charges pending, or is not suspended from practicing law in any other jurisdiction; and
 - (B) Remains an active licensee in good standing of the entity governing the practice of law in at least one United States state, jurisdiction, possession, territory, or dependency while practicing law under this rule.

(Subd (a) amended effective October 1, 2025; adopted as subd (g) effective November 15, 2004; previously relettered effective January 1, 2007; previously amended effective January 1, 2019.)

(b) Requirements

For an attorney to practice law under this rule, the attorney must:

- (1) Maintain an office in a United States jurisdiction other than California and in which the attorney is licensed to practice law;
- (2) Already be retained by a client in the matter for which the attorney is providing legal services in California, except that the attorney may provide legal advice to a potential client, at the potential client’s request, to assist the client in deciding whether to retain the attorney;
- (3) Indicate on any Web site or other advertisement that is accessible in California either that the attorney is not a licensee of the State Bar or that the attorney is admitted to practice law only in the states listed; and
- (4) Be an active attorney in good standing of the bar of a United States state, jurisdiction, possession, territory, or dependency.

(Subd (b) amended effective October 1, 2025; adopted as subd (a) effective November 15, 2004; previously relettered effective January 1, 2007; previously effective January 1, 2019.)

(c) Permissible activities

An attorney meeting the requirements of this rule, who complies with all applicable rules, regulations, and statutes, is not engaging in the unauthorized practice of law in California if the attorney's services are part of:

- (1) A formal legal proceeding that is pending in another jurisdiction and in which the attorney is authorized to appear;
- (2) A formal legal proceeding that is anticipated but is not yet pending in California and in which the attorney reasonably expects to be authorized to appear;
- (3) A formal legal proceeding that is anticipated but is not yet pending in another jurisdiction and in which the attorney reasonably expects to be authorized to appear; or
- (4) A formal legal proceeding that is anticipated or pending and in which the attorney's supervisor is authorized to appear or reasonably expects to be authorized to appear.

The attorney whose anticipated authorization to appear in a formal legal proceeding serves as the basis for practice under this rule must seek that authorization promptly after it becomes possible to do so. Failure to seek that authorization promptly, or denial of that authorization, ends eligibility to practice under this rule.

(Subd (c) relettered effective January 1, 2007; adopted as subd (b) effective November 15, 2004.)

(d) Restrictions

To qualify to practice law in California under this rule, an attorney must not:

- (1) Hold out to the public or otherwise represent that he or she is admitted to practice law in California;
- (2) Establish or maintain a resident office or other systematic or continuous presence in California for the practice of law;
- (3) Be a resident of California;
- (4) Be regularly employed in California;

- (5) Regularly engage in substantial business or professional activities in California; or
- (6) Have been disbarred, have resigned with charges pending, or be suspended from practicing law in any other jurisdiction.

(Subd (d) relettered effective January 1, 2007; adopted as subd (c) effective November 15, 2004.)

(e) Conditions

By practicing law in California under this rule, an attorney agrees that he or she is providing legal services in California subject to:

- (1) The jurisdiction of the State Bar;
- (2) The jurisdiction of the courts of this state to the same extent as is a licensee of the State Bar; and
- (3) The laws of the State of California relating to the practice of law, the State Bar Rules of Professional Conduct, the rules and regulations of the State Bar, and these rules.

(Subd (e) amended effective October 1, 2025; adopted as subd (d) effective November 15, 2004; previously relettered effective January 1, 2007; previously amended effective January 1, 2019.)

(f) Inherent power of Supreme Court

Nothing in this rule may be construed as affecting the power of the Supreme Court to exercise its inherent jurisdiction over the practice of law in California.

(Subd (f) amended effective October 1, 2025; adopted as subd (e) effective November 15, 2004; previously amended and relettered effective January 1, 2007.)

(g) Effect of rule on multijurisdictional practice

Nothing in this rule limits the scope of activities permissible under existing law by attorneys who are not licensees of the State Bar of California.

(Subd (g) amended effective January 1, 2019; adopted as subd (f) effective November 15, 2004; previously relettered effective January 1, 2007.)

Rule 9.47; amended effective October 1, 2025; adopted as rule 966 by the Supreme Court effective November 15, 2004; previously amended and renumbered effective January 1, 2007; previously amended effective January 1, 2019.

Rule 9.48. Nonlitigating attorneys temporarily in California to provide legal services

(a) Definitions

The following definitions apply to terms used in this rule:

- (1) “A transaction or other nonlitigation matter” includes any legal matter other than litigation, arbitration, mediation, or a legal action before an administrative decision-maker.
- (2) “Active attorney in good standing of the bar of a United States state, jurisdiction, possession, territory, or dependency” means an attorney who meets all of the following criteria:
 - (A) Is a licensee in good standing of the entity governing the practice of law in each jurisdiction in which the attorney is licensed to practice law who has not been disbarred, has not resigned with charges pending, or is not suspended from practicing law in any other jurisdiction; and
 - (B) Remains an active attorney in good standing of the entity governing the practice of law in at least one United States state, jurisdiction, possession, territory, or dependency other than California while practicing law under this rule.

(Subd (a) amended effective October 1, 2025; adopted as subd (h) effective November 15, 2004; previously relettered effective January 1, 2007; previously amended effective January 1, 2019.)

(b) Requirements

For an attorney to practice law under this rule, the attorney must:

- (1) Maintain an office in a United States jurisdiction other than California and in which the attorney is licensed to practice law;
- (2) Already be retained by a client in the matter for which the attorney is providing legal services in California, except that the attorney may provide legal advice to a potential client, at the potential client’s request, to assist the client in deciding whether to retain the attorney;
- (3) Indicate on any Web site or other advertisement that is accessible in California either that the attorney is not a licensee of the State Bar or that the attorney is admitted to practice law only in the states listed; and
- (4) Be an active attorney in good standing of the bar of a United States state, jurisdiction, possession, territory, or dependency.

(Subd (b) amended effective October 1, 2025; adopted as subd (a) effective November 15, 2004; previously relettered effective January 1, 2007; previously amended effective January 1, 2019.)

(c) Permissible activities

An attorney who meets the requirements of this rule and who complies with all applicable rules, regulations, and statutes is not engaging in the unauthorized practice of law in California if the attorney:

- (1) Provides legal assistance or legal advice in California to a client concerning a transaction or other nonlitigation matter, a material aspect of which is taking place in a jurisdiction other than California and in which the attorney is licensed to provide legal services;
- (2) Provides legal assistance or legal advice in California on an issue of federal law or of the law of a jurisdiction other than California to attorneys licensed to practice law in California; or
- (3) Is an employee of a client and provides legal assistance or legal advice in California to the client or to the client's subsidiaries or organizational affiliates.

(Subd (c) relettered effective January 1, 2007; adopted as subd (b) effective November 15, 2004.)

(d) Restrictions

To qualify to practice law in California under this rule, an attorney must not:

- (1) Hold out to the public or otherwise represent that he or she is admitted to practice law in California;
- (2) Establish or maintain a resident office or other systematic or continuous presence in California for the practice of law;
- (3) Be a resident of California;
- (4) Be regularly employed in California;
- (5) Regularly engage in substantial business or professional activities in California; or
- (6) Have been disbarred, have resigned with charges pending, or be suspended from practicing law in any other jurisdiction.

(Subd (d) amended and relettered effective January 1, 2007; adopted as subd (c) effective November 15, 2004.)

(e) Conditions

By practicing law in California under this rule, an attorney agrees that he or she is providing legal services in California subject to:

- (1) The jurisdiction of the State Bar;
- (2) The jurisdiction of the courts of this state to the same extent as is a licensee of the State Bar; and
- (3) The laws of the State of California relating to the practice of law, the State Bar Rules of Professional Conduct, the rules and regulations of the State Bar, and these rules.

(Subd (e) amended effective October 1, 2025; adopted as subd (d) effective November 15, 2004; previously amended and relettered effective January 1, 2007; previously amended effective January 1, 2019.)

(f) Scope of practice

An attorney is permitted by this rule to provide legal assistance or legal services concerning only a transaction or other nonlitigation matter.

(Subd (f) relettered effective January 1, 2007; adopted as subd (e) effective November 15, 2004.)

(g) Inherent power of Supreme Court

Nothing in this rule may be construed as affecting the power of the Supreme Court to exercise its inherent jurisdiction over the practice of law in California.

(Subd (g) amended effective October 1, 2025; adopted as subd (f) effective November 15, 2004; previously amended and relettered effective January 1, 2007.)

(h) Effect of rule on multijurisdictional practice

Nothing in this rule limits the scope of activities permissible under existing law by attorneys who are not licensees of the State Bar.

(Subd (h) amended effective October 1, 2025; adopted as subd (g) effective November 15, 2004; previously relettered effective January 1, 2007; previously amended effective January 1, 2019.)

Rule 9.48 amended effective October 1, 2025; adopted as rule 967 by the Supreme Court effective November 15, 2004; previously amended and renumbered effective January 1, 2007; previously amended effective January 1, 2019.

Rule 9.49. Provisional Licensure of 2020 Law School Graduates

(a) State Bar Provisional Licensure Program

- (1) The State Bar shall administer a program for provisionally licensing eligible 2020 Law School Graduates. The program shall be referred to as the “Provisional Licensure Program.”
- (2) The Provisional Licensure Program shall terminate on May 31, 2023 for 2020 Law School Graduates admitted to the program prior to December 31, 2022 who fail to satisfy all of the following requirements on or before May 31, 2023:
 - (A) Successful completion of the State Bar New Attorney Training Program;
 - (B) A passing score on the Multistate Professional Responsibility Exam;
 - (C) An active positive moral determination, unless the applicant has been suspended pending resolution of a final review or appeal under (j)(1)(C);
 - (D) Submission of all other documentation of completion in the format required by the State Bar;
 - (E) Approval of an eligible supervisor committed to supervise the participant through the end of 2023.
- (3) For 2020 Law School Graduates who have not received a passing score on the California Bar Exam, but have satisfied all the requirements under (a)(2) on or before May 31, 2023, the Provisional Licensure Program under this rule shall terminate on December 31, 2025.
- (4) Upon termination of the Provisional Licensure Program, no one who was provisionally licensed pursuant to this rule shall be permitted to continue to practice as a Provisionally Licensed Lawyer, nor shall they represent that they remain provisionally licensed or are otherwise authorized to practice law in the State of California unless they have been admitted to the practice of law in California after meeting all criteria for admission including passage of the California Bar Examination, or are otherwise authorized to practice law in this state other than under this rule. The temporary authorization to practice under supervision under the Provisional Licensure Program does not confer either a plenary license or any vested or implied right to be licensed.

(Subd (a) amended effective December 21, 2022; previously amended effective May 26, 2022.)

(b) Definitions

- (1) A "2020 Law School Graduate" means a person who became eligible to sit for the California Bar Examination under Business and Professions Code sections 6060 and 6061 between December 1, 2019 and December 31, 2020, either by graduating from a qualifying law school with a juris doctor (J.D.) or master of laws (LLM) degree during that time period, or by otherwise meeting the legal education requirements of Business and Professions Code sections 6060 and 6061 during that time period.
- (2) For purposes of this rule, a "Provisionally Licensed Lawyer" means a 2020 Law School Graduate who meets the eligibility criteria of this rule and is granted provisional licensure by the State Bar.
- (3) "Supervising Lawyer" means a lawyer who meets the eligibility criteria of this rule and who supervises one or more Provisionally Licensed Lawyers.
- (4) "Firm" or "law firm" means a law partnership; a professional law corporation; a lawyer acting as a sole proprietorship; an association authorized to practice law; or lawyers employed in a legal services organization or in the legal department, division, or office of a corporation, of a governmental organization, or of another organization as defined by rule 1.01 of the Rules of Professional Conduct and the commentary thereto.

(Subd (b) amended effective February 1, 2021.)

(c) Application Requirements

- (1) To participate in the Provisional Licensure Program, an applicant must complete the following application requirements no later than June 1, 2022.
 - (A) Submit an Application for Provisional Licensure with the State Bar, along with a fee of \$75, or \$50 if the employer paying the fee receives State Bar Legal Services Trust Fund grants and is a qualified legal services project or qualified support center as defined by statute. There shall be no fee for applicants whose sole use of the Provisional License will be in an unpaid volunteer capacity under the direction of the Supervising Lawyer;
 - (B) Submit to the State Bar a declaration signed by the applicant agreeing that the applicant will be subject to the disciplinary authority of the Supreme Court of California and the State Bar with respect to the laws of the State of California and governing the conduct of lawyers, and attesting that the applicant will not practice California law other than

under the supervision of a Supervising Lawyer during the time the applicant is provisionally licensed under this rule; and attesting that the applicant will not practice law in a jurisdiction where to do so would be in violation of laws of the profession in that jurisdiction; and

- (C) Submit to the State Bar a declaration signed by a Supervising Lawyer who meets the requirements of this rule attesting that the applicant is employed by or volunteers at, or has a conditional offer to be employed by or volunteer with the firm where the Supervising Lawyer works and that the firm has an office located in California; that the nature of the employment conforms with the requirements of this rule; whether the employment is paid or unpaid; and that the Supervising Lawyer meets the eligibility requirements of and will comply with this rule. If an applicant works or volunteers for more than one firm concurrently as a Provisionally Licensed Lawyer, the applicant shall have a Supervising Lawyer at each firm and shall submit a declaration from each Supervising Lawyer.

(2) An Application for Provisional Licensure may be denied if:

- (A) An applicant fails to comply with eligibility or application requirements;
- (B) In connection with the Application for Provisional Licensure, an applicant makes a statement of material fact that the applicant knows to be false or makes the statement with reckless disregard as to its truth or falsity; or
- (C) In connection with the Application for Provisional Licensure, an applicant fails to disclose a fact necessary to correct a statement known by the applicant to have created a material misapprehension in the matter, except that this rule does not authorize disclosure of information protected by Business and Professions Code section 6068, subdivision (e) or rule 1.6 of the California Rules of Professional Conduct.

(d) Eligibility Requirements

Except as provided in (a), to qualify as a Provisionally Licensed Lawyer under this rule, the applicant must:

- (1) Meet all of the requirements for admission to the State Bar with the following exceptions:
 - (A) The applicant need not have sat for or passed the California Bar Examination;

- (B) The applicant need not have obtained a positive moral character determination, so long as the applicant submitted a complete Application for Determination of Moral Character to the State Bar prior to submission of an Application for Provisional Licensure and that application has not resulted in issuance of an adverse moral character determination by the State Bar; and
 - (C) The applicant need not have sat for or passed the Multistate Professional Responsibility Exam prior to submission of an Application for Provisional Licensure if the applicant attests they will complete the legal ethics components of the New Attorney Training, described under (e)(1) of this rule, within the first 30 days of licensure as a Provisionally Licensed Attorney. If the legal ethics components of the New Attorney Training are not made available to the applicant at the time of licensure, the 30 days shall run from the first day the training components are made available. The exemption set forth in (e)(1) of this rule does not apply to Provisionally Licensed Lawyers who must take the legal ethics components in lieu of passage of the MPRE.
- (2) Comply with any rules or guidelines adopted by the State Bar relating to the State Bar's Provisional Licensure Program;
 - (3) Be employed by or volunteering with, or have a conditional offer of employment from or to volunteer with a firm that has an office located in California.; and
 - (4) Practice law under a Supervising Lawyer who is an active licensee in good standing of the State Bar or is a current judge of a court of record within the California judicial branch, who satisfies the requirements for serving as a Supervising Lawyer under this rule.

(Subd (d) amended effective December 21, 2022; previously amended effective February 1, 2021.)

(e) Responsibilities of Provisionally Licensed Lawyers

Provisionally Licensed Lawyers must comply with all of the following requirements. Failure to comply with these requirements shall result in immediate termination from the Provisional Licensure Program:

- (1) Complete the State Bar New Attorney Training program, as described in State Bar Rule 2.53, during the first 12 months of licensure as a Provisionally Licensed Lawyer, unless they would otherwise be exempt from this requirement under the State Bar Rules if they were admitted to the State Bar as a lawyer;

- (2) Expressly refer to themselves orally, including but not limited to, in conversations with clients or potential clients, and in writing, including but not limited to, in court pleadings or other papers filed in any court or tribunal, on letterhead, business cards, advertising, and signature blocks, as a Provisionally Licensed Lawyer and/or participant in the State Bar's Provisional Licensure Program, and not describe themselves as a fully-licensed lawyer, or imply in any way orally or in writing that they are a fully-licensed lawyer;
- (3) Include on every document the Provisionally Licensed Lawyer files in court or with any other tribunal the following information about the Supervising Lawyer: name, mailing address, telephone number, and State Bar number;
- (4) Maintain with the State Bar a current e-mail address and an address of record that is the current California office address of the Provisionally Licensed Lawyer's firm;
- (5) Report to the State Bar immediately upon termination of supervision by the Supervising Lawyer for any reason;
- (6) Report to the State Bar any information required of lawyers by the State Bar Act, such as that required by Business and Professions Code sections 6068(o) and 6068.8(c), or by other legal authority;
- (7) If reassigned to a new Supervising Lawyer for the same firm, submit a declaration from the new Supervising Lawyer in compliance with (c)(1)(C) and obtain State Bar approval before the new Supervising Lawyer assumes supervisory responsibility over the Provisionally Licensed Lawyer.
- (8) Submit a new Application for Provisional Licensure and obtain State Bar approval before beginning employment with a new firm;
- (9) Abide by the laws of the State of California relating to the practice of law, the California Rules of Professional Conduct, and the rules and regulations of the State Bar.

(Subd (e) amended effective February 1, 2021.)

(f) Prohibition on Accessing Client Trust Accounts

While practicing law under this rule, the Provisionally Licensed Lawyer must not open, maintain, withdraw funds from, deposit funds into, or attempt to open, maintain, or withdraw from or deposit into any client trust account.

(g) Permitted Activities

Subject to all applicable rules, regulations, and statutes, a Provisionally Licensed Lawyer may provide legal services to a client, including but not limited to appearing before a court or administrative tribunal, drafting legal documents, contracts or transactional documents, and pleadings, engaging in negotiations and settlement discussions, and providing other legal advice and counsel, provided that the work is performed under the supervision of a Supervising Lawyer.

(h) Communications and Work Product

For purposes of applying the privileges and doctrines relating to lawyer-client communications and lawyer work product, the Provisionally Licensed Lawyer shall be considered a subordinate of the Supervising Lawyer and thus communications and work product of the Provisionally Licensed Lawyer shall qualify for protection under such privileges and doctrines on the same basis.

(i) Supervision

- (1) To meet the requirements of this rule, a Supervising Lawyer must:
 - (A) Work for the same firm by which the Provisionally Licensed Lawyer is or will be employed or at which the Provisionally Licensed Lawyer is or will be volunteering;
 - (B) Have practiced law for at least four years in any United States jurisdiction and have actively practiced law in California or taught law at a California Law School for at least two years immediately preceding the time of supervision, and be a licensee in good standing of the State Bar of California or be a current judge of a court of record within the California judicial branch;
 - (C) Exercise competence in any area of legal service authorized under California law in which the Supervising Lawyer is supervising the Provisionally Licensed Lawyer, consistent with the requirements of rule 1.1 of the Rules of Professional Conduct;
 - (D) With the exception of a current judge of a court of record within the California judicial branch, not be inactive in California, or ineligible to practice, actually suspended, under a stayed suspension order, or have resigned or been disbarred in any jurisdiction;
 - (E) Disclose in writing, via email or other means, at the outset of representation or before the Provisionally Licensed Lawyer begins to provide legal services, that a Provisionally Licensed Lawyer and/or participant in the State Bar's Provisional Licensure Program may provide legal services related to the client's matter;

- (F) Be prepared to assume personal representation of the Provisionally Licensed Lawyer's clients if the Provisionally Licensed Lawyer becomes ineligible to practice under this rule or is otherwise unavailable to continue the representation;
 - (G) Agree to assume professional responsibility for any work that the Provisionally Licensed Lawyer performs under this rule; and
 - (H) Agree to notify the State Bar of California, in writing, within 10 calendar days if the Supervising Lawyer becomes aware or reasonably should have become aware that:
 - i. The Provisionally Licensed Lawyer has terminated employment;
 - ii. The Provisionally Licensed Lawyer is no longer eligible for participation in the Provisional Licensure Program;
 - iii. The Supervising Lawyer no longer meets the requirements of this rule;
 - iv. The Supervising Lawyer is no longer supervising the Provisionally Licensed Lawyer; or
 - v. The Supervising Lawyer has changed offices or email addresses.
- (2) A Supervising Lawyer may delegate some or all day-to-day supervisory responsibilities or supervisory responsibilities related to certain practice areas or assignments to another lawyer in the same organization who otherwise meets the requirements for Supervising Lawyers, without the need for those additional supervisors to file a declaration with the State Bar. The Supervising Lawyer's obligations under (i)(1)(G) are not affected by any such delegation.
- (3) A Supervising Lawyer who is a current judge of a court of record within the California judicial branch and lawyers to whom the judge delegates day-to-day supervisory responsibilities pursuant to (2) shall not be subject to the requirements of (i)(D) through (G).

(Subd (i) amended effective February 1, 2021.)

(j) Termination of Provisional Licensure

- (1) A Provisionally Licensed Lawyer's provisional license terminates:

- (A) Upon determination by the State Bar Court that the Provisionally Licensed Lawyer is culpable of conduct that would result in discipline if the Provisionally Licensed Lawyer were fully licensed by the State Bar of California, or upon imposition of any sanction for misconduct by any court or tribunal, or any professional or occupational licensing authority, including administrative or stayed suspension against the Provisionally Licensed Lawyer;
 - (B) Upon imposition of any discipline for misconduct by the State Bar of California, the Supreme Court, or any other bar, including administrative or stayed suspension, against the Supervising Lawyer, unless the Provisionally Licensed Lawyer has, within 15 calendar days of imposition of such discipline, obtained approval from the State Bar for a new Supervising Lawyer as required by this rule;
 - (C) Upon initial issuance of an adverse moral character determination by the State Bar. If the Provisionally Licensed Lawyer requests a review of the adverse determination under rule 4.47.1 of the Rules of the State Bar or appeals the adverse moral character determination of the Committee under rule 4.47 of the Rules of the State Bar, in lieu of termination the provisional license shall be suspended until final resolution of the review or appeal.
 - (D) Upon admission to the State Bar of California;
 - (E) Upon cessation of the Provisional Licensure Program;
 - (F) Upon request of the Provisionally Licensed Lawyer;
 - (G) For failure to complete the State Bar New Attorney Training Program consistent with (e)(1)(A) of this rule or failure to complete the legal ethics components under (d)(1)(C) of this rule;
 - (H) For failure to pay any fees required by the State Bar; or
 - (I) If the Provisionally Licensed Lawyer no longer meets the requirements of this rule.
- (2) A notice of termination is effective ten calendar days from the date of receipt. Receipt is deemed to be five calendar days from the date of mailing to a California address or emailing to the provisional licensee's email address of record; ten calendar days from the date of mailing to an address elsewhere in the United States; and twenty calendar days from the date of mailing to an address outside the United States. Alternatively, receipt is when the State Bar delivers a document physically by personal service or otherwise.

- (3) A Provisionally Licensed Lawyer whose provisional licensure terminated upon request or upon imposition of discipline against the Supervising Lawyer may be reinstated if they meet all eligibility and application requirements of this rule.

(Subd (j) amended effective May 26, 2022.)

(k) Public Records

State Bar records for Provisionally Licensed Lawyers, including office address and discipline records, are public to the same extent as State Bar records related to fully-licensed lawyers.

(l) Inherent Power of Supreme Court

Nothing in these rules may be construed as affecting the power of the Supreme Court to exercise its inherent jurisdiction over the practice of law in California.

Rule 9.49 amended effective December 21, 2022; adopted effective November 17, 2020; previously amended effective February 1, 2021, and May 26, 2022.

Rule 9.49.1 Provisional Licensure with Pathway to Full Licensure for Certain Individuals

(a) Expansion of the Provisional Licensure Program

The Provisional Licensure Program established pursuant to Rule 9.49 shall, no later than March 1, 2021, be expanded to include individuals who scored 1390 or higher on a California Bar Examination administered between July 2015 and February 2020, as determined by the first read score or final score, regardless of year of law school graduation or year satisfying the educational requirements to sit for the bar examination. The Provisional Licensure Program under this rule shall terminate on December 31, 2025.

(Sub(a) amended effective December 21, 2022; previously amended effective May 26, 2022.)

(b) Definitions

- (1) The definitions of “Supervising Lawyer” and “Firm” or “Law Firm” as set forth in rule 9.49(b) shall apply to this rule.
- (2) For purposes of this rule, “Provisionally Licensed Lawyer” means an individual who:

- (A) Scored between 1390 and 1439 on any California Bar Examination administered between July 2015 and February 2020, as determined by the first read score or final score, regardless of year of law school graduation or year satisfying the educational requirements to sit for the bar examination; and
 - (B) Meets the eligibility criteria under (d) and is granted provisional licensure by the State Bar.
- (3) For purposes of this rule, “legal practice” means the provision of permitted legal services to clients in compliance with rule 9.49(f) and (g).

(c) Application Requirements

All of the application requirements of rule 9.49(c) apply to applicants for provisional licensure under this rule. An application for provisional licensure under this rule must be submitted to the State Bar no later than December 31, 2023. Applications shall not be accepted after that date.

(Subd (c) amended effective December 21, 2022.)

(d) Eligibility Requirements

With the exception of rules 9.49(d)(1)(A) and 9.49(a)(2), all eligibility requirements of rule 9.49(d) apply to applicants for provisional licensure under this rule. However, an applicant who has previously received an adverse moral character determination is ineligible to apply under this rule unless more than two years has elapsed from the date of the final determination or after some other time set by the State Bar, for good cause shown, at the time of its adverse determination, within the meaning of State Bar Rule 4.49.

(Subd (d) amended effective December 21, 2022.)

(e) Responsibilities of Provisionally Licensed Lawyer

All requirements of rule 9.49(e) and (f) apply to Provisionally Licensed Lawyers under this rule with the exception that the State Bar New Attorney Training program described in rule 9.49(e)(1) must be completed in order for a Provisionally Licensed Lawyer to qualify for admission to the State Bar of California under this rule.

(f) Permitted activities

All of the permitted activities set forth in rule 9.49(g) apply to Provisionally Licensed Lawyers under this rule.

(g) Communications and Work Product

For purposes of applying the privileges and doctrines relating to lawyer-client communications and lawyer work product, the Provisionally Licensed Lawyer under this rule shall be considered a subordinate of the Supervising Lawyer and thus communications and work product of the Provisionally Licensed Lawyer shall qualify for protection under such privileges and doctrines on the same basis.

(h) Termination of Provisional Licensure

The conditions for termination of a provisional license under rule 9.49(j) apply to Provisionally Licensed Lawyers under this rule.

(i) Admission to the State Bar of California

A Provisionally Licensed Lawyer, under this rule, shall be eligible for admission to the State Bar of California upon compliance with all of the following requirements.

- (1) The Provisionally Licensed Lawyer shall complete 300 total hours of supervised legal practice in the Provisional Licensure Program:
- (2) Provisionally Licensed Lawyers under rule 9.49 who also qualify for participation under this rule may receive credit for hours of supervised legal practice completed as a provisional licensee under rule 9.49 for purposes of meeting the hours requirement under (i)(1). Such individuals must comply with all of the application and eligibility requirements under this rule to qualify for admission to the State Bar of California.
- (3) The Provisionally Licensed Lawyer shall submit, in the format developed by the State Bar of California, a record of the hours of supervised legal practice completed under supervision of the Supervising Lawyer(s).
- (4) The Provisionally Licensed Lawyer must complete the required total number of hours of supervised legal practice, satisfy all eligibility requirements for admission not met at the time of application to the program, have an active positive moral character determination, submit a satisfactory evaluation(s) pursuant to (j)(2), and submit all other documentation of completion in the format required by the State Bar by December 31, 2025 to qualify for admission to the State Bar.
- (5) A Provisionally Licensed Lawyer who satisfies the requirements of (i)(4), but has a disciplinary matter pending with the Office of Chief Trial Counsel or the State Bar Court shall, prior to the date the Provisional Licensure Program terminates under (a) and (h), be permitted to continue practicing as a Provisionally Licensed Lawyer if all other requirements of this rule have been met. If the disciplinary matter is pending as of the date the program

terminates, the Provisionally Licensed Lawyer shall be placed in an abeyance status until the matter is resolved, and shall not continue to practice as Provisionally Licensed Lawyer.

- (A) If the complaint is resolved with no disciplinary action, before or after the termination of the Provisional Licensure Program under (a) and (h), the Provisionally Licensed Lawyer shall qualify for admission to the State Bar as long as all other requirements for admission remain current and satisfied.
 - (B) If the complaint is resolved with a determination that the Provisionally Licensed Lawyer is culpable of conduct that would result in discipline if the Provisionally Licensed Lawyer were fully licensed by the State Bar of California, the Provisionally Licensed Lawyer shall not qualify for admission to the State Bar under this program and shall be terminated from the Provisional Licensure Program.
- (6) The Provisionally Licensed Lawyer must comply with all the eligibility requirements for certification to the California Supreme Court for admission to the practice of law under Business and Professions Code section 6060 and rule 4.15 of the Rules of the State Bar of California. A Provisionally Licensed Lawyer who satisfies the requirements of (i)(4) shall be deemed to meet the requirement of Business and Professions Code section 6060, subdivision (g).

(Subd (i) was amended effective December 21, 2022; previously amended effective May 26, 2022.)

(j) Supervision and Evaluation of Provisionally Licensed Lawyer

- (1) In addition to the requirements under (j)(2), all of the eligibility requirements, duties and responsibilities of a Supervising Lawyer set forth under rule 9.49(i) apply to Supervising Lawyers under this rule.
- (2) Each Supervising Lawyer shall provide an evaluation of the Provisionally Licensed Lawyer in the format developed by the State Bar of California. The evaluation shall include the following:
 - (A) Verification of the number of hours of supervised legal practice completed;
 - (B) A general description of the types of supervised legal practice performed by the Provisionally Licensed Lawyer;
 - (C) Whether, in the opinion of the Supervising Lawyer, based on the supervised legal practice performed during the program, the

Provisionally Licensed Lawyer possesses the minimum competence expected of an entry level attorney; and

(D) Other criteria established by the State Bar.

- (3) If a Supervising Lawyer cannot attest that a Provisionally Licensed Lawyer possesses the minimum competence of an entry level attorney, the Provisionally Licensed Lawyer may not be admitted to the State Bar of California under this program without additional hours of supervised legal practice sufficient to establish to the Supervising Lawyer that the Provisionally Licensed Lawyer possesses the minimum competence of an entry level attorney, and submission of a satisfactory evaluation by that Supervising Lawyer before the termination of the program.

Rule 9.49.1 amended effective December 21, 2022; adopted effective February 1, 2021; previously amended effective March 17, 2021, and May 26, 2022.

Division 5. Censure, Removal, Retirement, or Private or Public Admonishment of Judges

Rule 9.60. Review of determinations by the Commission on Judicial Performance

Rule 9.61. Proceedings involving public or private admonishment, censure, removal, or retirement of a judge of the Supreme Court

Rule 9.60. Review of determinations by the Commission on Judicial Performance

(a) Time for petition for review to Supreme Court

A petition to the Supreme Court by a judge or former judge to review a determination by the Commission on Judicial Performance to retire, remove, censure, admonish, or disqualify the judge or former judge must be served and filed within 60 days after:

- (1) The Commission, under its rules, notifies the judge or former judge that its determination has been filed or entered in its records; or
- (2) The determination becomes final as to the Commission under its rules, whichever event is later.

(Subd (a) amended effective January 1, 2007.)

(b) Time for answer to petition for review and reply

Within 45 days after service of the petition, the Commission may serve and file an answer. Within 20 days after service of the answer, the judge or former judge may

serve and file a reply. Each petition, answer, or reply submitted for filing must be accompanied by proof of service, including service on the Commission of three copies of any petition or reply filed by a judge or former judge. Extensions of time to file the petition, answer, or reply are disfavored and will be granted only upon a specific and affirmative showing of good cause. Good cause does not include ordinary press of business.

(Subd (b) lettered effective January 1, 2007; adopted as part of subd (a) effective December 1, 1996.)

(c) Contents and form

The petition, answer, and reply must address both the appropriateness of review and the merits of the Commission's determination, and they will serve as briefs on the merits in the event review is granted. Except as provided in these rules, the form of the petition, answer, and reply must, insofar as practicable, conform to rule 8.504 except that the lengths of the petition, answer, and reply must conform to the limits specified in rule 8.204(c). Each copy of the petition must contain:

- (1) A copy of the Commission's determination;
- (2) A copy of the notice of filing or entry of the determination in the records of the Commission;
- (3) A copy of any findings of fact and conclusions of law; and
- (4) A cover that bears the conspicuous notation "PETITION FOR REVIEW OF DETERMINATION BY COMMISSION ON JUDICIAL PERFORMANCE (RULE 9.60)" or words of like effect.

(Subd (c) amended and relettered effective January 1, 2007; adopted as subd (b) effective December 1, 1996.)

(d) Transmission of the record

Promptly upon the service and filing of the petition, the Commission must transmit to the Clerk of the Supreme Court the original record, including a transcript of the testimony, briefs, and all original papers and exhibits on file in the proceeding.

(Subd (d) amended and relettered effective January 1, 2007; adopted as subd (c) effective December 1, 1996.)

(e) Applicable rules on review

In the event review is granted, the rules adopted by the Judicial Council governing appeals from the superior court in civil cases, other than rule 8.272 relating to costs, apply to proceedings in the Supreme Court for review of a determination of the

Commission except where express provision is made to the contrary or where such application would otherwise be clearly impracticable or inappropriate.

(Subd (e) amended and relettered effective January 1, 2007; adopted as subd (d) effective December 1, 1996.)

Rule 9.60 amended and renumbered effective January 1, 2007; adopted as rule 935 effective December 1, 1996.

Rule 9.61. Proceedings involving private or public admonishment, censure, removal, retirement, or disqualification of a judge of the Supreme Court

(a) Selection of appellate tribunal

Immediately on the filing of a petition to review a determination by the Commission on Judicial Performance to retire, remove, censure, admonish, or disqualify a justice of the Supreme Court, the Clerk of the Supreme Court must select, by lot, seven Court of Appeal justices who must elect one of their number presiding justice and perform the duties of the tribunal created under article VI, section 18(f) of the Constitution. This selection must be made upon notice to the Commission, the justice, and the counsel of record in a proceeding open to the public. No court of appeal justice who has served as a master or a member of the Commission in the particular proceeding or is otherwise disqualified may serve on the tribunal.

(Subd (a) amended effective January 1, 2007; previously amended effective December 1, 1996.)

(b) Clerk of Supreme Court as clerk of tribunal

The Clerk of the Supreme Court serves as the clerk of the tribunal.

(Subd (b) amended effective January 1, 2007.)

Rule 9.61 amended effective January 1, 2019; adopted as rule 921 effective November 13, 1976; previously amended and renumbered as rule 936 effective December 1, 1996, and as rule 9.61 effective January 1, 2007.

Division 6. Judicial Ethics Opinions

Division 6, Judicial Ethics Opinions, adopted effective July 1, 2009.

Rule 9.80. Committee on Judicial Ethics Opinions

Rule 9.80. Committee on Judicial Ethics Opinions

(a) Purpose

The Supreme Court has established the Committee on Judicial Ethics Opinions to provide judicial ethics advisory opinions and advice to judicial officers and candidates for judicial office.

(b) Committee determinations

In providing its opinions and advice, the committee acts independently of the Supreme Court, the Commission on Judicial Performance, and all other entities. The committee must rely on the California Code of Judicial Ethics, the decisions of the Supreme Court and of the Commission on Judicial Performance, and may rely on other relevant sources in its opinions and advice.

(c) Membership

The committee consists of twelve members appointed by the Supreme Court, including at least one justice from a Court of Appeal and one member who is a subordinate judicial officer employed full-time by a superior court. The remaining members must be justices of a Court of Appeal or judges of a superior court, active or retired. No more than a total of two retired justices or judges may serve on the committee at one time, except that if an active justice or judge retires during his or her term, he or she will be permitted to complete his or her term. A retired justice or judge may only serve so long as he or she is not an active licensee of the State Bar of California and is not engaged in privately compensated dispute resolution activities.

(d) Terms

- (1) Except as provided in subdivision (d)(2), all full terms are for four years. Appointments to fill a vacancy will be for the balance of the term vacated. A member may apply to be reappointed by the Supreme Court at the end of a four-year term and renewal of the term is not a presumption.
- (2) To create staggered terms among the members of the committee, the Supreme Court appointed initial members of the committee as follows:
 - (A) Three members each to serve an initial term of five years. The court may reappoint these members to additional full terms.
 - (B) Three members each to serve an initial term of four years. The court may reappoint these members to additional full terms.
 - (C) Three members each to serve an initial term of three years. The court may reappoint these members to additional full terms.

- (D) Three members each to serve an initial term of two years. The court may reappoint these members to additional full terms.
- (3) Committee members may not simultaneously serve as members of the Commission on Judicial Performance or the California Judges Association's Judicial Ethics Committee. If a member of the committee accepts appointment to serve on one of these entities, that member will be deemed to have resigned from the committee and the Supreme Court will appoint a replacement.

(Subd (d) amended effective January 1, 2021; adopted effective July 1, 2009; previously amended effective January 1, 2016 and January 1, 2019.)

(e) Powers and duties

The committee is authorized to provide ethics advice to judicial officers and candidates for judicial office, including formal written opinions, informal written opinions, and expedited written opinions. Specifically, the committee is authorized to:

- (1) Issue formal written opinions, informal written opinions, and expedited written opinions on proper judicial conduct under the California Code of Judicial Ethics, the California Constitution, statutes, and any other authority deemed appropriate by the committee.
- (2) Make recommendations to the Supreme Court for amending the Code of Judicial Ethics or these rules;
- (3) Make recommendations regarding appropriate subjects for judicial education programs; and
- (4) Make other recommendations to the Supreme Court as deemed appropriate by the committee or as requested by the court.

(Subd (e) amended effective January 1, 2021; adopted effective July 1, 2009.)

(f) Referrals to California Judges Association's Judicial Ethics Committee

The committee may adopt a revocable policy of referring requests for ~~oral~~ expedited advice, with conditions and exceptions as approved by the committee, to the California Judges Association's Judicial Ethics Committee.

(Subd (f) amended effective January 1, 2021; adopted effective July 1, 2009.)

(g) Chair and vice-chair

The Supreme Court will appoint a chair, and vice-chair from the members of the committee to serve a term of four years each. The chair and the vice-chair may be reappointed by the Supreme Court. When a member's term as chair or vice-chair ends and the member is not reappointed as chair or vice-chair, that member's committee membership term also ends unless the Supreme Court reappoints the member to the committee. The chair may call meetings as needed, and to otherwise coordinate the work of the committee.

(Subd (g) amended effective January 1, 2021; adopted effective July 1, 2009; previously amended effective January 1, 2016 and January 1, 2019.)

(h) Confidentiality

Communications to and from the committee are confidential except as described here. Encouraging judicial officers and candidates for judicial office to seek ethics opinions and advice from the committee will promote ethical conduct and the fair administration of justice. Establishing the confidentiality of committee proceedings and communications to and from the committee is critical to encourage judicial officers and candidates for judicial office to seek ethics opinions and advice from the committee. The necessity for preserving the confidentiality of these proceedings and communications to and from the committee outweighs the necessity for disclosure in the interest of justice. Therefore, to promote ethical conduct by judicial officers and candidates for judicial office and to encourage them to seek ethics opinions and advice from the committee, the following confidentiality requirements, and exceptions, apply to proceedings and other matters under this rule:

- (1) Notwithstanding any other provision of law, and with the exception of formal opinions, informal opinions, expedited opinions, and comments from the public on draft formal opinions posted on the committee's website, all opinions, inquiries, replies, circulated drafts, records, documents, writings, files, communications with its staff, work product of the committee or its staff, and deliberations and proceedings of the committee are confidential. All communications, written or verbal, from or to the person or entity requesting an opinion or advice are deemed to be official information within the meaning of the Evidence Code. In addition, all communications and documents regarding opinions or advice of the California Judges Association forwarded by the California Judges Association to the committee are deemed to be confidential information.
- (2) Members of the committee and its staff may not disclose outside the committee or its staff any confidential information, including identifying information, obtained by the committee or its staff concerning an individual whose inquiry or conduct was the subject of any communication with the committee or its staff.

- (3) A judicial officer or candidate for judicial office may waive confidentiality; any such waiver must be in writing. If the judicial officer or candidate making the request for an opinion or advice waives confidentiality or asserts reliance on an opinion or advice in judicial or attorney discipline proceedings, such opinion or advice no longer is confidential under these rules. Notwithstanding any waiver, committee deliberations and records are confidential.
- (4) Members of the public and entities may submit comments on draft formal opinions for consideration by the committee members before deciding on whether to publish a final formal opinion. Such comments from the public are deemed not to be confidential communications and may be posted on the committee's website for public review at the committee's discretion.

(Subd (h) amended effective January 1, 2021; adopted effective January 1, 2019.)

(i) Opinion requests

- (1) The committee may issue formal written opinions, informal written opinions, or expedited written opinions on any subject it deems appropriate. Any person or entity may suggest to the committee, in writing, topics to be addressed in a formal written opinion.
- (2) Only judicial officers and candidates for judicial office may request informal written opinions and expedited written opinions.
- (3) A judicial officer or candidate for judicial office requesting a written opinion, formal or informal, must submit the request in writing, including by electronic mail. The request must be in a form approved by the committee and must describe the facts and discuss the issues presented in the request. The identity, organizational affiliation, and geographic location of persons requesting opinions are confidential.
- (4) A judicial officer or candidate for judicial office requesting an expedited written opinion may communicate in person, in writing, including by electronic mail, or by telephone to committee staff or any member of the committee.
- (5) A judicial officer or candidate for judicial office requesting an opinion or advice must disclose to the committee whether the issue that is the subject of the inquiry is also the subject of pending litigation involving the inquiring judicial officer or candidate or a pending Commission on Judicial Performance or State Bar disciplinary proceeding involving the inquiring judicial officer or candidate.

(Subd (i) amended effective January 1, 2021; adopted effective July 1, 2009.)

(j) Consideration of requests

- (1) The committee will determine whether a request for an opinion should be resolved with a formal written opinion, an informal written opinion, an expedited written opinion, or any combination or form of advice. The committee may decline to issue an opinion or advice.
- (2) Eight members must vote affirmatively to adopt a formal written opinion. After the committee authorizes a formal written opinion and before it becomes final, it will be posted in draft form on the committee's website and made available for public comment for at least 45 days, unless the committee in its discretion decides such an opinion should be issued in final form in less time or with no prior notice. Public comments may be posted on the website following the public comment period at the committee's discretion. After the public comment period has expired, eight members must vote affirmatively to publish the opinion in its original form, or to modify or withdraw the formal written opinion.
- (3) Informal written opinions and expedited written opinions must be approved by vote of the committee members. The committee must adopt procedures concerning the number of votes required to issue an informal written opinion or expedited written opinion.
- (4) The committee must adopt procedures concerning the handling and determination of requests for opinions or advice.
- (5) The committee will inform the inquiring judicial officer or candidate for judicial office that he or she must disclose all relevant information and that any opinion or advice issued by the committee is based on the premise that the inquiring judicial officer or candidate has disclosed all relevant information.
- (6) The committee may confer in person, in writing, including by electronic mail, by telephone, or by videoconference as often as needed to conduct committee business and resolve pending requests.

(Subd (j) amended effective January 1, 2021; adopted effective July 1, 2009; previously amended January 1, 2019.)

(k) Opinion distribution

- (1) The committee will, upon final approval of a formal written opinion, ensure distribution of the opinion, including to the person or entity who requested the opinion, all California judicial officers, and other interested persons.

- (2) The committee's informal written opinions and expedited written opinions will, upon approval by the committee, be provided to the inquiring judicial officer or candidate for judicial office.
- (3) The committee will post all formal written opinions on the committee's website. The committee may post its informal written opinions and expedited written opinions on the committee's website.
- (4) The committee must maintain records of committee determinations and opinions at the committee's office.

(Subd (k) amended effective January 1, 2021; adopted effective July 1, 2009; previously amended effective January 1, 2019.)

(l) Withdrawn, modified, and superseding opinions

The committee may withdraw, modify, or supersede an opinion or advice at any time.

(Subd (l) amended effective January 1, 2021; adopted effective July 1, 2009.)

(m) Internal operating rules

The committee must adopt procedures, subject to approval by the Supreme Court, to implement this rule.

(Subd (m) amended effective January 1, 2019.)

(n) Website, e-mail address, and toll-free telephone number

The committee must maintain a website, e-mail address, and toll-free telephone number.

(Subd (n) amended effective January 1, 2019.)

Rule 9.80 amended effective January 1, 2021; adopted effective July 1, 2009; previously amended effective January 1, 2016 and January 1, 2019.

Division 7. State Bar Trustees

Division 7, State Bar Trustees, adopted effective January 23, 2013.

Rule 9.90. Nominations and appointments of State Bar trustees

Rule 9.90. Nominations and appointments of State Bar trustees

(a) State Bar Trustees Nominating Committee

- (1) The Supreme Court appoints five attorneys to the State Bar Board of Trustees, each for a four-year term. The court may reappoint an attorney for one additional term. The court may also fill any vacancy in the term of, and make any reappointment of, any appointed attorney member. Each appointee must be an active licensee of the State Bar and have his or her principal office in California.
- (2) In order to ensure that individuals appointed by the Supreme Court to the State Bar Board of Trustees have been evaluated objectively, the court has established an independent “State Bar Trustees Nominating Committee”(committee) to receive applications and screen and evaluate prospective appointees. The role of the committee is to determine whether applicants possess not only the statutorily enumerated qualifications, but also any other qualifications that may be required to carry out the duties of the Board of Trustees.
- (3) The committee serves at the pleasure of the court. The committee will consist of seven members appointed by the court of whom five must be active licensees of the State Bar in good standing, and two must be active or retired judicial officers. A committee chair and vice-chair are designated by the court. The court will seek to create a broadly representative body to assist it in its considerations.

Except as provided below, all full terms are for three years. Members may not serve more than two consecutive full terms. Members will continue to serve until a successor is appointed. Appointments to fill a vacancy will be for the balance of the term vacated. Members who are appointed to fill a vacancy for the balance of a term are eligible to serve two full terms in addition to the remainder of the term for which they were appointed.

To create staggered terms among the members of the committee, the Supreme Court will appoint initial members of the committee as follows:

- (A) Four members each to serve a term of three years. The court may reappoint these members to one full term.
 - (B) Three members each to serve a term of two years. The court may reappoint these members to one full term.
- (4) The committee must adopt, and implement upon approval by the Supreme Court, procedures for:

- (A) Receipt of applications and initial screening of applicants for appointments to fill the vacant positions, including adoption of a comprehensive application form;
- (B) Receipt of evaluations concerning selected applicants;
- (C) Identification and collection of actual and potential conflicts of interest for those applicants selected for interviews by the committee. These procedures, at a minimum, must require these applicants to confidentially disclose any financial and nonfinancial interests that might affect or might be affected by service by the applicant as a Trustee and a list of attorneys whom each applicant would identify as creating a conflict in any future service by the applicant as a Trustee;
- (D) Evaluation and rating of applicants; and
- (E) Transmittal of the materials specified in (b) of this rule to the Supreme Court.

The procedures adopted by the committee must include provisions to ensure the confidentiality of its evaluations.

- (5) In recommending candidates, in order to provide for the appointment of trustees who bring to the board a variety of experiences, the committee should consider:
 - (A) Legal services attorneys, solo practitioners, attorneys with small firms, and attorneys with governmental entities;
 - (B) Historically underrepresented groups, such as those underrepresented because of race, ethnicity, gender, and sexual orientation;
 - (C) Legal academics;
 - (D) Geographic distribution;
 - (E) Years of practice;
 - (F) Attorneys who are in their first five years of practice;
 - (G) Participation in voluntary local or state bar activities;
 - (H) Participation in activities to benefit the public; and
 - (I) Other factors demonstrating a background that will help inform the work of the board.

- (6) The State Bar must provide the support the committee requires to discharge its obligations under this rule.

(Subd (a) amended effective December 1, 2023; previously amended effective January 1, 2019.)

(b) Evaluations

- (1) The committee must evaluate the qualifications of and rate all applicants and must submit to the court the nominations of at least three qualified candidates for each vacancy. Candidates are to be rated as “not recommended,” “recommended,” and “highly recommended.” A rating of “not recommended” relates only to the position under consideration and does not indicate any lack of ability or expertise of the applicant generally. The committee must report in confidence to the Supreme Court its evaluation, rating, and recommendation for applicants for appointment and the reasons therefore, including a succinct summary of their qualifications, at a time to be designated by the Supreme Court. The report must include written comments regarding the nominees received by the committee, which must be transmitted to the Supreme Court together with the nominations.
- (2) In determining the qualifications of an applicant for appointment or reappointment the committee should, in addition to the factors cited in (a)(5), consider the following: focus on the public interest, public service, commitment to the administration of justice, objectivity, community respect, integrity, ability to work collaboratively, and balanced temperament.
- (3) The committee must use the information obtained under the procedures developed pursuant to (a)(4)(C) of this rule to evaluate the actual or potential conflicts of interest of applicants selected for interviews. The committee shall consider whether the applicant’s actual or potential conflicts of interest should disqualify the applicant or reduce the applicant’s rating under (a)(4)(D) of this rule. In making this determination, the committee shall consider whether the applicant has financial or nonfinancial interests or relationships with other attorneys that may impact the applicant’s ability to perform the duties of a Trustee with disinterested skill and undivided loyalty to the State Bar as described in Business and Professions Code section 6036, subdivision (b), or may impact the Board of Trustee’s appearance to the public as a body that conducts its work with disinterested skill and undivided loyalty. The committee shall include its determination on this issue in the report to the Supreme Court required under (b)(1) of this rule.

(Subd (b) amended effective December 1, 2023.)

Rule 9.90 amended effective December 1, 2023; adopted effective January 23, 2013; previously amended effective January 1, 2019.